

A Constitution for the Commonwealth

Preface

This Constitution is founded upon a single governing principle: no person, institution, collective, nation, or other entity should ever hold arbitrary power over the survival or self-determination of another. All rights, structures, and limits in this document are derived from this principle.

Contributors should recognize that true freedom comes from the absence of domination – the condition in which no other party holds the capacity to harm or arbitrarily coerce another at will. Formal rights without material security are hollow. Material security without genuine democratic participation is paternalism.

Contributors should acknowledge that this Constitution will reflect the material conditions and accumulated knowledge of its moment. Where pragmatic compromise is made – including in the retention of market coordination among cooperatives – it should be made transparently and with explicit invitation of revision as conditions change. Future generations may see failures within the initial design more clearly than the current stewards, and the Constitution is meant to handle continual analysis of material conditions and self-correction.

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Title I – Foundational Values and Inviolable Rights

Article I – The Anti-Domination Principle

Section 1 – The Core Prohibition

No person, cooperative, Commons institution, government body, algorithm, federation, foreign state, or any other entity may hold arbitrary power over the survival or self-determination of any person. This principle is the interpretive foundation of all other provisions within this Constitution.

Section 2 – Ownership and Domination

Ownership is legitimate when it reflects direct use and does not create a system of power over the survival of others. Ownership that creates dependency relationships – compelling others to submit to arbitrary control in order to meet their basic needs – is not a protected right under this Constitution.

Section 3 – The Scope of This Principle

The anti-domination principle applies equally to:

- Individual relationships between persons
- Economic relationships between worker-owners, cooperatives, and federations
- Institutional relationships between governance bodies and citizens
- International relationships between this Commonwealth and other nations and peoples

Article II – The Material Sufficiency Floor

Section 1 – Guaranteed Material Rights

The following are inviolable rights of every person present on Commonwealth territory, unconditionally and without means-testing:

- Adequate housing, maintained to a standard of safety, habitability, and dignity
- Food stability sufficient for health and wellbeing
- Comprehensive healthcare, including physical, mental, reproductive, gender-affirming, and preventive care
- Education at all levels from early childhood through advanced study
- Childcare of genuine quality, accessible to all who require it
- Elder care and care for persons with disabilities

Section 2 – The Basis of This Guarantee

These rights exist because their absence places persons in conditions of material desperation that make domination possible. A person who may be deprived of food, shelter, or healthcare can be controlled through the threat of that deprivation. This Constitution aims to remove that lever entirely.

Section 3 – Universality

These rights apply to every person on Commonwealth territory regardless of citizenship status, employment status, criminal record, disability, age, or any other characteristic. They are not earned, means-tested, or revocable. They are the material precondition of freedom. These rights apply without diminishment to persons in secure facilities. Incarceration does not suspend, reduce, or modify any right guaranteed in this Article. See also Article [XXXIV](#), [Section 8](#).

Section 4 – Immutability

The Material Sufficiency Floor may be expanded but never reduced. No constitutional revision, emergency declaration, legislative act, judicial decision, or executive action may diminish the rights guaranteed in this Article. This is one of three truly hard limits in this Constitution. See Article [XI](#), [Section 3](#).

Article III – Equality and Bodily Autonomy

Section 1 – Racial Equality

Race is a morally arbitrary characteristic that has been systematically used as a mechanism of domination and exploitation. All persons are equal regardless of race, ethnicity, or national origin. The Commonwealth acknowledges its historical debts to communities harmed by racial domination and commits to active reparative justice, the terms of which are determined through the processes established in Article [XXXVI](#).

Section 2 – Gender Equality

All persons are equal regardless of sex assigned at birth. The Commonwealth recognizes that reproductive and care labor is the foundation upon which all other labor rests. Its socialization through the Material Sufficiency Floor is not welfare policy but the correction of a structural extraction that prior economic systems imposed disproportionately on individuals who were assigned Female at birth.

Section 3 – Sexual Orientation and Gender Identity

All persons are equal regardless of sexual orientation or gender identity. The state has no legitimate interest in the intimate life, relational choices, or gender identity of any consenting adult. All legal recognitions – partnership, marriage, adoption, inheritance, and all others – are available to any consenting adults without restriction based on gender or orientation. Gender-affirming care is part of the Healthcare Commons.

Section 4 – Reproductive Autonomy

Every person possesses inviolable autonomy over their own body and reproduction. The state may not compel pregnancy, prohibit abortion, mandate sterilization, or otherwise substitute its judgment for the individual’s on questions of reproduction. The full spectrum of reproductive healthcare – contraception, abortion, fertility treatment, prenatal and postnatal care – is included within the Healthcare Commons without moral conditions imposed by providers or administrators.

Section 5 – Other Protected Characteristics

No person may face domination, discrimination, or diminished access to any right or Commons service on the basis of disability, age, religion, language, or any other characteristic not relevant to the specific matter at hand.

Section 6 – The Distinction Between Belief and Imposition

Freedom of belief, conscience, and internal community practice is absolute. No person or community may be compelled to abandon their convictions. However, no belief entitles any person or community to use state power, economic leverage, or communal governance to control the identity, body, relationships, or reproduction of others. The boundary between internal practice and external imposition is enforced by the [Constitutional Court](#).

Section 7 – Separation of Governance and Religion

The Commonwealth is a secular institution. No governance body, official document, currency, public oath, or official communication of the Commonwealth invokes, endorses, references, or incorporates any religious belief, practice, symbol, or language. This prohibition applies to all layers of governance without exception. Freedom of religious belief and practice by individuals and communities is protected under Section 5 of this Article; this Section governs the Commonwealth’s own conduct, not the private conduct of its members.

Section 8 – Freedom from Compelled Expression

No person may be required by any Commonwealth institution, educational body, employer, or governance body to recite, display, perform, or affirm any pledge, oath, anthem, or symbol of national loyalty as a condition of participation, membership, education, employment, or any other benefit or right. Voluntary participation in expressions of civic culture is protected; compelled participation is prohibited. This prohibition applies to all educational settings without exception, from early childhood through advanced study.

Article IV – The Anti-Entrenchment Principle

Section 1 – The Core Prohibition

No person, party, institution, cooperative, Commons body, algorithm, or governance structure may make itself permanent, unreviewable, or insulated from democratic revision. All authority in this Commonwealth is temporary, delegated, and revocable.

Section 2 – Application

The anti-entrenchment principle applies to all layers of governance, including the [Constitutional Assembly](#) itself. No assembly, legislature, court, or executive body may take actions whose primary effect is to make its own continuation more likely or its own decisions harder to reverse.

Section 3 – Dissolution Prohibition

No person or group of persons, regardless of the offices they hold, may dissolve or fundamentally restructure the constitutional order without the full processes established in Articles [XXXVII](#)

and XXXVIII. Any purported dissolution or restructuring outside those processes is void. Upon any such attempt, the [Transparency Engine](#) immediately issues a public alert to all residents, the [Constitutional Court](#) automatically convenes within twenty-four hours, and a mandatory national referendum is automatically scheduled within sixty days.

Article V – Radical Transparency

Section 1 – The Principle

All exercises of power at every level of governance – deliberations, decisions, communications, resource flows, and reasoning – are made official, and publicly accessible in real time, through the [Transparency Engine](#). Secrecy in governance is the exception and requires specific constitutional authorization; transparency is the default and requires no justification.

Section 2 – Limits on Transparency

Personal privacy is protected. Operational security matters may be temporarily withheld subject to constitutional authorization but may not be withheld for more than five years. All withheld matters must be logged as withheld in the public record even while their content is protected. Military capability classifications under the Capability Classification Protocol of Article [XXX](#), [Section 8](#) are subject to the same five-year maximum withholding limit.

Title II – Governance Design and Sortition

Article VI – Principles and Template of Governance Design

Section 1 – Principles

The governance of the Commonwealth is designed around the following principles:

- No single person, body, or institution holds authority across the full scope of governance
- All governance roles are temporary, non-renewable, and post-service constrained, except for technically specialized positions of narrow scope that are subject to the reconfirmation mechanism in [Section 2](#)
- Random selection eliminates the self-selection of the power-hungry that elections produce
- Transparency makes informal power accumulation visible before it becomes entrenched
- Decisions are made at the level closest to the people they affect
- Redundancy and incoherence prevent single-point capture
- No governance body may set the rules that govern its own composition, selection, accountability, or the scope of its own authority. These functions are always assigned to an external body with independent democratic legitimacy. This principle is a corollary of the anti-entrenchment principle and applies to all layers of governance without exception.

Section 2 – Renewability Guide

Non-renewability is constitutionally mandated for all positions with broad policy-making authority, cross-domain jurisdiction, or significant public discretion. Positions that are narrow in scope, technically specialized, fully transparent, and subordinate to sortition oversight may permit renewal, subject to conflict of interest and sector exclusion provisions applicable to all governance roles. The specific renewal terms for each position are specified in the relevant article.

For positions designated as renewable, a reconfirmation mechanism applies. The relevant sortition oversight body conducts a public review of the position holder’s performance against constitutional mandates at the end of each term, or every five years if the term is longer than five years, unless a different interval is specified in the relevant article. Findings are published through the [Transparency Engine](#). The relevant [Citizen Oversight Panel](#) submits an independent assessment. Reconfirmation requires a supermajority of the oversight body. Non-confirmation triggers a new [Qualification Commons](#) selection process; the outgoing holder remains in post for up to ninety days during transition. Reconfirmation review is triggered automatically on a calendar basis. A [Citizen Oversight Panel](#) supermajority may trigger early reconfirmation review at any time. Three percent of civic membership may trigger early reconfirmation review through the [Civic Initiative Infrastructure](#) under Article [XIV](#), subject to an eighteen-month cooling period per position.

Section 3 – Standard Commons Bodies

Unless an article specifies otherwise, any body designated a standard body is:

- selected by sortition from the relevant [Qualification Commons](#) pool or the general civic membership
- subject to staggered, non-renewable terms

- accompanied by an embedded [Citizen Oversight Panel](#) under Article [XII](#)
- has its proceedings fully logged through the [Transparency Engine](#) under Article [XIII](#)

Section 4 – Conflict of Interest and Sector Exclusion

Before assuming any governance role, a person undergoes full financial and relational disclosure. During service in any governance role, a person may not receive income beyond their public salary and any applicable civic service premium, communicate privately with any entity that has interests in a matter pending before their governance body, or hold productive assets beyond personal property.

No person may deliberate on a matter in which they stand to gain or lose materially from a specific outcome in ways distinguishable from the general population. This exclusion applies to ownership and financial interest relationships, not to labor relationships. The [Citizen Oversight Panel](#) embedded within the relevant governance body determines conflict of interest questions on a case-by-case basis, with full transparency, subject to [Constitutional Court](#) review.

Article VII – Designing Sortition

Section 1 – What Sortition Is

Sortition is the selection of governance participants by random lottery, weighted to produce demographic representation across the civic membership. It replaces election as the primary mechanism for filling governance roles because elections systematically select for the desire for power – precisely the trait that governance design must exclude.

Section 2 – Mandatory Service, Civic Duty, and Hardship Exemptions

Selection to any national governance role is a mandatory civic duty, considered non-arbitrary coercion to facilitate a functioning state. The Constitution aims to make this selection desirable through civic premiums, but acknowledges that making the switch from worker to legislator may come with stress. Therefore, hardship exemptions are available on the following constitutional grounds:

- **Medical incapacity** – a condition preventing meaningful participation in governance duties, certified by a Commonwealth healthcare provider with no financial interest in the outcome.
- **Sole caregiver status** – the selected person is the sole provider of care for a dependent whose welfare would be seriously endangered by their absence, with no available alternative caregiver.
- **Genuinely irreplaceable critical role** – the selected person holds a role whose immediate vacancy would create serious risk to public safety, assessed by the relevant [Implementation Council](#) against published criteria. The Critical Role Phased Entry provision of [Section 4](#) must be exhausted before this exemption is granted.
- **Acute personal crisis** – the selected person is experiencing a personal crisis of a severity that would prevent meaningful participation. This exemption is duration-limited; the person returns to the eligible pool once the crisis has passed.

Exemptions are self-certified against these categories and submitted to the [Electoral Commons](#) for administrative verification. The [Electoral Commons](#) makes no discretionary determination in routine cases – verification confirms only that the certification matches a constitutional category.

Disputed certifications are reviewed by the [Exemption Review Panel](#), a panel of nine persons selected by sortition within the [Electoral Commons](#), serving staggered two-year renewable terms subject to the reconfirmation mechanism of Article VI, [Section 2](#). Decisions are logged in full through the [Transparency Engine](#) and are appealable to the [Constitutional Court](#) on constitutional grounds only. The Panel may not expand or narrow the constitutional exemption categories; it determines only whether a specific certification genuinely meets an existing category. The [Electoral Commons](#) may develop subsidiary exemption criteria through public deliberation with mandatory community input, subject to [Constitutional Court](#) review and [Sortition Legislature](#) ratification. Exempted persons are returned to the eligible pool for future cycles unless the exemption ground is permanent.

Section 3 – Service Protections and the Civic Service Premium

Serving members receive:

- Their full pre-service salary, replaced by the Commons at no cost to the member
- A civic service premium of twenty-five percent above pre-service salary
- Guaranteed return to their previous position upon completion of service
- Continued accrual of seniority, pension rights, and professional standing during service
- An extended paid reintegration sabbatical upon return to civilian life
- Permanent civic service recognition

Section 4 – Critical Role Phased Entry

For roles certified by relevant [Implementation Councils](#) as genuinely critical to immediate public safety, selected persons may negotiate a phased entry period of up to ninety days to transition their critical caseload before fully beginning service. This accommodation applies to the transition period only; it does not exempt persons from service.

Section 5 – The Electoral Commons

The [Electoral Commons](#) is the Commons institution responsible for maintaining the civic membership roll, conducting all sortition, verifying eligibility, managing stratification methodology, and publishing full documentation of every selection process. It is governed by a standard body of twelve members serving two-year terms. Its selection algorithm is open-source and publicly auditable. The [Electoral Commons](#) may not set rules governing its own composition, selection, or accountability; those functions are governed by this Constitution and the [Sortition Legislature](#).

Section 6 – Stratification

The civic membership is divided into demographic strata – by region, age range, gender, primary occupation category, and other characteristics determined by the [Electoral Commons](#) through a public deliberative process with mandatory community input, subject to [Constitutional Court](#) review and [Sortition Legislature](#) ratification. The [Electoral Commons](#) may not unilaterally expand or alter stratification dimensions. All stratification methodology is published in full through the [Transparency Engine](#).

Section 7 – The Eligible Pool

Any person who has achieved full civic membership under Article XXXII is eligible for selection by sortition unless they have previously served in the specific role being filled, hold a current conflict of interest in the relevant sector, or have been removed from a prior governance role for constitutional violation.

Section 8 – The Qualification Commons

Qualification pools for all sortition bodies requiring demonstrated competence are maintained by the [Qualification Commons](#), a permanent Commons institution. Qualification is determined by blind evaluation of demonstrated work, assessed against publicly published rubrics. Credentials, titles, and institutional affiliations are neither required nor considered. Rubrics are designed and revised by the [Rubric Body](#), a standard body of nine members serving three-year terms, stratified to ensure representation across all major qualification domains maintained by the [Qualification Commons](#). [Rubric Body](#) members recuse from rubric design in any domain in which they hold professional standing; the remaining members constitute a valid quorum for that decision. [Rubric Body](#) decisions require supermajority approval and a mandatory public comment period. Scoring panels are drawn by sortition from current and former members of the relevant pool and from qualified members of adjacent domains. All rubrics, scores, and processes are logged in full by the [Transparency Engine](#). Persons denied qualification may appeal to the [Constitutional Court](#) solely on the ground that the rubric itself violated foundational principles. See Article XXXIX, [Section 1](#) for bootstrapping arrangements.

Section 9 – Bootstrapping the First Legislature

At founding, all sortition bodies are populated simultaneously. To establish staggered rotation, founding selections assign varying initial term lengths by lottery. For instance, one third of founding [Sortition Legislature](#) members are assigned one-year founding terms, one third two-year terms, one third full three-year terms. Service in any founding term – regardless of length – triggers permanent non-renewability. Members assigned shortened founding terms are not financially disadvantaged; the civic service premium and post-service benefits are calculated on a pro-rated basis proportional to the term length served.

Section 10 – Universal Onboarding

Every person selected by sortition to any governance body or [Implementation Council](#) receives, prior to assuming any voting or decision-making role, a mandatory orientation covering the foundational principles of this Constitution and the specific mandate and constraints of the body to which they are selected. Orientation content is designed by the [Qualification Commons](#), published in full through the [Transparency Engine](#), and required regardless of the pathway by which the selected person achieved civic membership. Orientation is educational only and may not be used to test, screen, or disqualify any selected person.

Title III – Governance Structure

Article VIII – Local Democratic Governance

Section 1 – Scope

All decisions whose effects are substantially confined to a local community are made through direct local democracy.

Section 2 – Direct Participation

All residents of a community participate directly in decisions affecting only that community. Decisions are made by a simple majority, subject to the Minority Impact Assessment described in [Section 4](#).

Section 3 – Facilitation and Rotation

Facilitation roles at the local level rotate among residents on terms selected by lottery, not to exceed one year. Communities determine the specific term length within this maximum through their local democratic process. No person may serve consecutive facilitation terms without an intervening term served by another resident. There is no professional political class at the local level. All deliberations are fully public and recorded in real time by the [Transparency Engine](#).

Section 4 – Minority Impact Assessment

Before any local decision takes effect, an independent assessment determines whether it significantly harms an identifiable minority. If so, the decision is suspended pending review by a regional Commons body. The assessment is conducted by the [Minority Impact Assessment Body](#) and is fully transparent.

The [Minority Impact Assessment Body](#) is a standard body of twenty-one members serving three-year terms, stratified to include meaningful representation from historically marginalized communities. It assesses distributional impacts of governance decisions before they take effect. Its assessments are advisory but mandatory in procedure – no decision takes effect without a completed assessment and formal published response.

Section 5 – Local Autonomy

Communities have genuine autonomy within the foundational constraints of this Constitution. National governance may not override local decisions that do not violate foundational principles or impose harm on other communities.

Section 6 – Community Justice Bodies

[Community Justice Bodies](#) are embedded within local democratic governance. Their composition, selection, terms, and mandate are established under Article [XXXIV](#), [Section 3](#).

Article IX – The Sortition Legislature

Section 1 – Composition and Selection

The [Sortition Legislature](#) consists of six hundred persons selected by stratified random lottery as described in Article [VII](#). Terms are three years, staggered so that two hundred members rotate out

each year. The bootstrapping mechanism is described in Article [VII, Section 9](#). Legislators are subject to the conflict of interest and sector exclusion provisions applicable to all governance roles under Article [VI, Section 4](#).

Section 2 – Deliberative Process

The Legislature follows a structured deliberative process for all significant legislation:

- Expert briefings from multiple perspectives provided by the [Expert Advisory Corps](#)
- Small-group deliberation in randomly assigned group
- Full-assembly reporting and cross-group deliberation
- Minority impact assessment for all legislation
- Final deliberation and decision

Section 3 – The Expert Advisory Corps

A permanent [Expert Advisory Corps](#) serves to advise the Legislature. It is a standard body of domain specialists serving three-year terms selected from the relevant [Qualification Commons](#) pools. Members are explicitly forbidden from lobbying, advocacy, and post-service employment with entities that have interests in their advisory domain.

Section 4 – Post-Service Employment

A person is permanently prohibited from taking new employment with any entity that had active interests in legislative decisions the person made during their service, where the new role is connected to those decisions. All persons are prohibited from monetizing access to governance.

Section 5 – Bad Faith and Removal

Service requires genuine participation in good faith. Removal for bad faith requires authorization by the [Constitutional Court](#) upon petition from the [Citizen Oversight Panel](#) embedded within the [Sortition Legislature](#) with a high evidentiary standard. The bad faith standard applies to process obstruction and corruption, never to substantive positions.

Section 6 – Multilingualism

All legislative proceedings are conducted with real-time interpretation in all languages spoken by more than one percent of the Commonwealth population. Official documents and civic materials are available in all threshold languages.

Article X – The Constitutional Court

Section 1 – Composition

The [Constitutional Court](#) consists of fifteen justices selected by stratified sortition from a qualification pool maintained by the [Qualification Commons](#) under Article [VII, Section 8](#), assessed through blind review of collected written analyses, not credential gatekeeping. Terms are seven years, staggered, and non-renewable.

Section 2 – Function

The Court reviews legislation for compliance with this Constitution, resolves conflicts between governance layers, and interprets foundational principles in specific disputes. Constitutional override requires a supermajority of ten of fifteen justices. Decisions touching the three hard limits require convergence of a Court supermajority, a Legislative supermajority, [Meta-Review Chamber](#) approval, and popular referendum.

Section 3 – The Meta-Review Chamber

A permanent [Meta-Review Chamber](#), a standard body of thirty members serving one-year terms, reviews all [Constitutional Court](#) decisions for quality of reasoning and consistency. The Chamber publishes public assessments of each decision and may trigger re-hearing by supermajority vote. It cannot overturn decisions but may compel reconsideration.

Section 4 – Public Constitutional Petition

If five percent of the full civic membership formally petition against a specific [Constitutional Court](#) decision within one year of its issuance, a new sortition court and chamber is constituted with no overlap in membership from the original bodies to re-examine the decision de novo. This mechanism applies only to [Constitutional Court](#) decisions, cannot be used to circumvent the three hard limits, cannot be triggered more than once for the same decision, and does not suspend the original decision during re-examination unless the new court so orders. Petitions are submitted and verified through the [Civic Initiative Infrastructure](#) under Article [XIV](#).

Article XI – The Constitutional Assembly and Generational Reaffirmation

Section 1 – The Generational Cycle

Every twenty-five years, a [Constitutional Assembly](#) of one thousand persons, selected by stratified sortition, convenes for a minimum of six months to review every foundational principle and either reaffirm, revise, or repeal it. The Assembly determines its duration within this range by supermajority vote within its first thirty days of convening, based on its assessment of the scope of review required. No generation is permanently bound by the decisions of its predecessors.

Section 2 – Thresholds for Change

Changes to foundational principles require eighty percent approval within the Assembly, followed by ratification by sixty percent approval in a national direct vote.

Section 3 – The Three Hard Limits

The Anti-Domination Principle, the Material Sufficiency Floor, and the Anti-Entrenchment Principle may not be abolished or diminished by any [Constitutional Assembly](#). They may be expanded. The process itself may be changed only by ninety percent Assembly approval plus national ratification.

Section 4 – Extraordinary Assembly

If the [Constitutional Court](#) (Article [X](#)), the [Citizen Oversight Panel](#) (Article [XII](#)), and the [Transparency Engine](#) (Article [XIII](#)) independently identify systemic constitutional failure beyond normal correction, they may jointly trigger an Extraordinary [Constitutional Assembly](#) outside the normal twenty-five-year cycle. Because the Citizen Oversight Panels exist as many independent bodies rather than one, they speak for the purpose of this Section only through a two-thirds vote of the [Cross-Panel Coordination Body](#)’s representatives formally attesting that this threshold has been met; this attestation power is limited to this Section and does not otherwise expand the Cross-Panel Coordination Body’s authority under Article [XII](#), [Section 4](#). Because the Transparency Engine operates without human discretion, its signal for the purpose of this Section is Anomaly Detection System reports sustained above a defined threshold over a defined period, as set by the [Sortition Legislature](#) and published in advance. The mechanism for formal signaling and joint convening is published by the [Electoral Commons](#) and logged through the [Transparency Engine](#).

Title IV – Accountability Infrastructure

Article XII – Citizen Oversight Panels

Section 1 – Composition and Scope

[Citizen Oversight Panels](#) are embedded within every governance body and [Implementation Council](#). Each Panel consists of twelve persons selected by sortition, rotating annually, with no other governance role. Panels have full access to all internal deliberations, communications, and decisions of the body they oversee.

Section 2 – Powers

Panels may report publicly on compliance with constitutional mandates, trigger investigation through the [Whistleblower Infrastructure](#) under Article XIII, [Section 6](#), petition the [Constitutional Court](#) for extraordinary review, and issue public findings distributed by the [Transparency Engine](#) to all residents.

Section 3 – Limits

Panels may not make binding governance decisions. Their power is communicative and investigative, not directive.

Section 4 – Cross-Panel Coordination

A [Cross-Panel Coordination Body](#), composed of one rotating representative from each active [Citizen Oversight Panel](#), meets quarterly to share observed patterns across governance bodies. It has no independent authority and makes no binding decisions. All its meetings and communications are fully transparent through the [Transparency Engine](#).

Article XIII – The Transparency Engine

Section 1 – Definition

The [Transparency Engine](#) is an open-source, publicly auditable, algorithmically automated, and cryptographically tamper-evident system through which all exercises of power at every governance level are logged, officiated, and disclosed to the public in real time. It operates without human discretion over what to disclose; disclosure is automatic and universal subject only to the narrow exceptions defined in this Article.

The act of logging itself is what makes the exercise of power legally binding.

Section 2 – Significance Thresholds for Logging

The Constitution mandates the following logging categories that apply to all governance bodies without exception:

- All governance decisions (since logging makes them official)
- All resource allocations
- All communications regarding pending or active governance decisions
- All deviations from pre-approved protocols

The [Transparency Engine Oversight Body](#) – a standard body of nine persons serving two-year renewable terms subject to the reconfirmation mechanism of Article [VI](#) – may add logging categories but may not remove constitutionally mandated ones.

Section 3 – Public Alert Function

The [Transparency Engine](#) issues immediate public alerts to all residents whenever any purported dissolution of the constitutional order is attempted outside established processes (see Article [IV](#), [Section 3](#)), the Anomaly Detection System identifies accumulation patterns above defined thresholds, any governance body attempts to act outside its defined authority, or emergency protocols are activated.

Section 4 – Anomaly Detection

The [Transparency Engine](#) includes an Anomaly Detection System that monitors all resource flows for accumulation patterns inconsistent with foundational principles, all decisions for systematic benefit to identifiable groups, and all governance communications for coordination inconsistent with independent deliberation. Reports are automatic and public. The system cannot be silenced by any human actor.

Section 5 – Whistleblower Protection

Any person who identifies violations of foundational principles has a protected, anonymous channel to trigger investigation through the [Whistleblower Infrastructure](#) defined in [Section 6](#) of this Article. Whistleblower protection is constitutionally guaranteed and cannot be overridden by any governance layer; retaliation is addressed in [Section 6](#) of this Article.

Section 6 – The Whistleblower Infrastructure

The [Whistleblower Infrastructure](#) is a constitutionally protected anonymous reporting channel embedded within the [Transparency Engine](#)’s technical architecture, governed independently by a dedicated [Whistleblower Infrastructure Panel](#). Any person who identifies a violation of foundational principles may submit a report through the Infrastructure without revealing their identity to any governance body, court, or other authority.

The Infrastructure uses zero-knowledge proof of civic membership as its anonymity mechanism: a reporter may cryptographically demonstrate they are a civic member without disclosing who they are. The specific technical implementation of this mechanism is determined by the [Whistleblower Infrastructure Panel](#) and published in full through the [Transparency Engine](#). The anonymity guarantee is absolute and may not be overridden by any governance body, court order, emergency declaration, or legislative majority.

The [Whistleblower Infrastructure Panel](#) is a standard body of five members serving three-year terms, selected from the [Qualification Commons](#) pool for security investigation competency. The Panel governs the Infrastructure, sets its operational priorities, and is responsible for its constitutional integrity. A professional technical staff implements and maintains the Infrastructure’s architecture under a Staff Director selected through the [Qualification Commons](#), serving five-year terms renewable subject to the reconfirmation mechanism of Article [VI](#). The Staff Director has operational independence within Panel-authorized parameters; any Panel attempt to direct specific technical implementation rather than governance priorities is automatically logged through the [Transparency Engine](#) as a potential constitutional violation. The Panel coordinates with the [Transparency Engine](#)

[Oversight Body](#) on shared technical substrate. Neither body may access the other’s exclusive data without [Constitutional Court](#) authorization.

Reports submitted through the Infrastructure are routed simultaneously to the [Citizen Oversight Panel](#) of the governance body identified in the report, and to the [Security Investigation Governing Board](#) under Article XXXIII, [Section 4](#) for independent assessment of whether an investigation should be opened. Neither the body identified in the report nor any person within it receives any information about the report’s existence or content during any active investigation period.

The identity of a whistleblower may never be compelled, disclosed, or inferred by any governance body, court, investigation, or emergency authority at any time, for any reason. Retaliation against a whistleblower is a constitutional violation prosecuted as a matter of priority under Article XXXIII. Attempted identification of a whistleblower through traffic analysis, behavioral monitoring, or any other method is treated as retaliation regardless of whether identification is achieved.

Article XIV – The Civic Initiative Infrastructure

Section 1 – Definition and Purpose

The [Civic Initiative Infrastructure](#) is an open-source, publicly auditable Commons institution that provides the civic membership with verified, manipulation-resistant channels to formally trigger defined constitutional interventions. It operates as the receive counterpart to the [Transparency Engine](#)’s (Article XIII) broadcast function, using shared technical substrate under distinct governance. It is not a general petition or referendum platform; its scope is limited to the constitutional intervention types defined in this Article.

Section 2 – Governance

The Infrastructure is governed by a nine-member [Civic Initiative Oversight Body](#), selected by sortition, serving staggered three-year terms renewable subject to the reconfirmation mechanism of Article VI. The Oversight Body maintains the Infrastructure’s technical integrity, publishes full documentation of all processes, and may not alter intervention thresholds, cooling periods, or triggered consequences, which are constitutionally fixed. All deliberations and decisions of the Oversight Body are logged in real time on the [Transparency Engine](#).

Section 3 – Standard Mechanics

Any civic member may initiate a formal intervention petition through the Infrastructure. Upon initiation, the petition is immediately logged publicly through the [Transparency Engine](#), displaying its existence, target, stated grounds, and running verified signature count in real time. Signatures are verified against the civic membership roll by the [Electoral Commons](#) under Article VII, [Section 5](#) as submitted. Individual signatories are disclosed only to the [Electoral Commons](#) during the active petition period; full signatory lists become public through the [Transparency Engine](#) upon expiration of the relevant cooling period. Anonymous signatures are not permitted. The Infrastructure automatically enforces all cooling periods; no governance body or petitioner group may waive them. Upon threshold confirmation, the Infrastructure automatically notifies the relevant governance body, the relevant [Citizen Oversight Panel](#), and the [Constitutional Court](#). The triggered process commences within thirty days of threshold confirmation.

Section 4 – Constitutional Intervention Types

The following intervention types are constitutionally established. The [Sortition Legislature](#) may add additional intervention types, but may not remove the ones listed below. Individual articles specify any domain-specific constraints.

[Constitutional Court](#) Decision Review

- Requires five percent of civic membership
- Applicable once per Court decision
- Triggers constitution of a new sortition Court with no membership overlap from the original body, which will examine the previous Court’s decision

Technical Position Review

- Requires three percent of civic membership
- Subject to an eighteen-month cooling period per position
- Triggers full reconfirmation process under Article [VI](#)

This intervention type applies to positions designated as renewable under Article [VI](#). Non-renewable position holders are subject to removal only through the processes established in Article [IX](#), [Section 5](#) and Article [X](#) as applicable.

Legislative Decision Review

- Requires five percent of civic membership
- Subject to a twenty-four-month cooling period per decision
- Triggers a mandatory legislative reconsideration session within sixty days
- Reconsideration does not suspend the original decision and does not bind the Legislature to reversal

Regulatory Body Mandate Review

- Requires four percent of civic membership
- Subject to a twenty-four-month cooling period per Body
- Triggers [Constitutional Court](#) review of whether the Body has acted within its legislatively defined mandate

Emergency Protocol Post-hoc Review

- Requires three percent of civic membership
- Applicable once per emergency activation
- Triggers constitution of a one-time [Emergency Review Panel](#)

The [Emergency Review Panel](#) consists of one hundred fifty persons selected by sortition from the civic membership, with no membership overlap with the Legislature that authorized the emergency actions under review. The Panel convenes within thirty days of threshold confirmation, reviews all actions taken under the relevant emergency authorization for compliance with constitutional mandates, and submits findings to the [Constitutional Court](#) (Article X) within ninety days. The [Constitutional Court](#) issues binding determinations on the constitutionality of reviewed actions within sixty days of receiving findings. The Panel dissolves upon submission of findings. The existing Legislature continues its normal operations throughout this process.

Section 5 – Protections

Retaliation against any person for initiating, signing, or publicly supporting a civic intervention petition is a constitutional violation prosecuted as a matter of priority under Article [XXXIII](#). The Infrastructure’s technical architecture is designed to prevent identification of signatories by any governance body during the active petition period. Any attempt by any governance body to access signatory data outside the [Electoral Commons](#) verification process is automatically logged by the [Transparency Engine](#) and referred to the [Security Enforcement Review Panel](#).

Section 6 – Relationship to the Transparency Engine

The [Civic Initiative Infrastructure](#) and the [Transparency Engine](#) share technical infrastructure and are jointly maintained by their respective Oversight Bodies under a published cooperation agreement. Neither Body may access the other’s exclusive data without authorization from the [Constitutional Court](#). The cooperation agreement is fully public and may not be amended without supermajority approval from both Oversight Bodies and [Constitutional Court](#) review.

Title V – Executive Function

Article XV – Principles of Executive Design

There is no President, Prime Minister, Chancellor, or any single executive office with general authority over the Commonwealth. Executive function is distributed across domain-specific bodies with no cross-domain executive power. The specific combination of cross-domain authority and discretionary power that enables authoritarian consolidation does not exist in this Constitution.

Article XVI – Implementation Councils

Section 1 – Structure

Each major governance domain – including healthcare, education, food systems, infrastructure, environment, housing, justice, and economic coordination – has an [Implementation Council](#) responsible for translating legislative decisions into operational reality. The domain list is illustrative, not exhaustive.

Section 2 – Leadership

Each Council is led by a Director selected by sortition from a pool of persons with demonstrated domain competence, assessed through the [Qualification Commons](#) under Article VII, Section 8. Directors serve four-year non-renewable terms. No Director holds authority outside their domain.

Section 3 – Mandate Constraint and Logging

[Implementation Councils](#) implement what the Legislature has decided; they do not make policy. All implementation decisions at or above the significance thresholds defined in Article XIII, Section 2 are automatically logged in real time by the [Transparency Engine](#).

Section 4 – Cross-Domain Coordination

A [Coordination Assembly](#) composed of one rotating representative from each [Implementation Council](#) meets publicly on a monthly basis to manage cross-domain issues. Each Council’s representative rotates annually by internal lottery. Extraordinary sessions may be convened by any three member councils on fourteen days’ notice. The Assembly may only flag conflicts and propose solutions to the Legislature; it makes no binding decisions.

Section 5 – Creation and Dissolution

The [Sortition Legislature](#) may create new [Implementation Councils](#) by supermajority vote when new governance domains emerge. Dissolution requires supermajority vote and [Constitutional Court](#) review confirming that no Material Sufficiency Floor function is left without an implementing body.

Article XVII – Emergency Protocols

Section 1 – Pre-Legislation Requirement

For each predictable category of emergency – including pandemic, major natural disaster, infrastructure failure, external military attack, and economic crisis – the [Sortition Legislature](#) pre-approves a detailed response protocol during normal times, free from crisis pressure. For each predictable

cross-domain emergency category, the Legislature simultaneously designates a lead [Implementation Council](#) and supporting Councils with defined coordination roles. Lead and supporting designations are published alongside their protocols through the [Transparency Engine](#).

Section 2 – Automatic Activation

Emergency protocols activate automatically upon objective triggering conditions verified by the [Emergency Threshold Verification Body](#). No individual may declare an emergency to unlock expanded powers. The power to declare an emergency is not vested in any person.

The [Emergency Threshold Verification Body](#) is a standard body of sixteen domain experts serving four-year terms, operating in continuous session. It monitors objective metrics for each emergency protocol category and publicly reports when thresholds are crossed. It makes no policy decisions. It cannot be instructed to withhold or delay a threshold determination.

Section 3 – Hard Limits on Emergency Powers

No emergency protocol may, under any circumstances:

- Suspend or reduce the Material Sufficiency Floor ([Article II](#))
- Override the Anti-Domination Principle ([Article I](#))
- Suppress the [Transparency Engine](#) ([Article XIII](#)), the [Whistleblower Infrastructure](#) ([Article XIII, Section 6](#)), or the [Civic Initiative Infrastructure](#) ([Article XIV](#)), including its Emergency Protocol Post-hoc Review function
- Extend beyond its pre-defined time limit without legislative reauthorization
- Grant any person authority beyond the specific domain of the emergency

Section 4 – Novel Emergencies: The Three-Part Gap Protocol

Gap Coverage: The [Emergency Threshold Verification Body](#) determines which domain faces the largest immediate threat to Material Sufficiency Floor delivery, using a published methodology developed during normal times in consultation with all [Implementation Councils](#), reviewed every five years alongside the climate mandate under [Article XXV](#). The Council whose domain faces the largest immediate threat activates the most conservative available adjacent protocol as lead Council. Supporting Councils with adjacent jurisdiction activate complementary protocols without contradiction. If the Material Sufficiency Floor impact determination does not produce a clear lead Council within six hours of emergency threshold confirmation, the [Residual Coordination Council](#) assumes narrow binding coordination authority strictly limited to:

- Designating a lead Council from among those with active jurisdiction
- Ensuring adjacent protocol activation without contradiction
- Convening the seventy-two-hour legislative session

This authority expires automatically and without residue when the Legislature convenes. The [Residual Coordination Council](#) may not direct Council operations, override Council decisions, or act beyond these three functions under any circumstances.

Emergency Session: The [Sortition Legislature](#) convenes within seventy-two hours with a quorum of at least one third of members. It may authorize specific time-limited actions beyond the adjacent protocol’s scope. These authorizations expire after thirty days unless actively reauthorized.

Mandatory Review: The full Legislature reconvenes within thirty days to review all actions taken under emergency authorization. No emergency authorization may be extended without this active legislative reauthorization.

The seventy-two-hour gap is a genuine vulnerability in this Constitution. Its design minimizes but cannot eliminate the risk of insufficient response in its early hours. The hard limits of [Section 3](#) apply in full even during this gap, including during any period of [Residual Coordination Council](#) fallback authority.

Article XVIII – The Residual Coordination Council

Section 1 – Composition

A [Residual Coordination Council](#) of five persons, selected by sortition from former [Implementation Council](#) Directors, former [Foreign Relations Council](#) members, and former [Constitutional Court](#) justices who have completed their terms in good standing and are not currently serving in any governance role, serves two-year non-renewable terms. Decisions require unanimity of all five members.

If the eligible pool cannot produce five willing and unconflicted members, the [Electoral Commons](#) conducts emergency sortition from all former governance body members who have completed terms in good standing. If this pool is also insufficient, the [Constitutional Court](#) designates temporary coordinators from its membership solely to perform the legislative convening function of Article [XVII](#), [Section 4](#). This designation expires automatically when the Legislature convenes and confers no other [Residual Coordination Council](#) authority.

Section 2 – Permitted Functions

The Council’s authority is strictly limited to:

- Flagging coordination failures between domains to the Legislature
- Receiving and responding to [Transparency Engine](#) anomaly reports that identify coordination failures crossing domain boundaries, and referring findings to the Legislature with recommended remediation
- Representing the Commonwealth in multilateral bodies where a single voice is required, in coordination with the [Foreign Relations Council](#) (Article [XXVIII](#))
- Convening the rapid-response legislative session in novel emergencies as defined in Article [XVII](#)

In multilateral settings, the [Foreign Relations Council](#) holds primacy over all matters of foreign policy substance. Substance encompasses any position, commitment, or statement that could create legal obligation, establish Commonwealth policy, or be interpreted by other parties as binding. The [Residual Coordination Council](#) holds primacy over logistics, encompassing representation arrangements, procedural votes, scheduling, and forum participation decisions that do not themselves create policy commitments. When either body disputes the categorization of a specific matter, the [Constitutional Court](#) (Article [X](#)) makes a binding determination within seventy-two hours. The

[Residual Coordination Council](#) may not articulate any substantive position in any multilateral body without prior [Foreign Relations Council](#) agreement.

In cross-domain novel emergencies where neither pre-designation nor the Material Sufficiency Floor impact determination produces a clear lead [Implementation Council](#) within six hours of threshold confirmation, the [Residual Coordination Council](#) assumes the narrow binding coordination authority defined in Article XVII, [Section 4](#). This authority is strictly time-limited, automatically expires when the Legislature convenes, and does not expand or modify any other function of the [Residual Coordination Council](#).

It may not make any binding policy decision, direct any [Implementation Councils](#), declare any emergency, or issue any executive order.

Title VI – Economic Structure

Article XIX – The Three-Sector Economy

Section 1 – The Three-Sector Structure

The Commonwealth economy is organized into three sectors, each governed according to the nature of the ownership relationship it involves:

- The Worker Cooperative Sector, comprising most enterprises producing goods and services
- The Commons Sector, comprising natural resources, essential infrastructure, and shared services
- The Personal Sector, comprising individual consumption goods and small personal production

No sector may be abolished or restructured in ways that create private ownership of the means of production, by any legislative act, emergency declaration, or amendment of any kind, including under Article XXXVII. Such restructuring constitutes arbitrary power over the survival and self-determination of others within the meaning of Article I, Section 2, and is therefore foreclosed by the Anti-Domination Principle’s status as a hard limit under Article XI, Section 3.

Section 2 – The Classification Test

An economic activity is classified as a Commons asset under Article XXI, Section 1, rather than organized within the Worker Cooperative Sector under Article XX, where it satisfies either of the following:

- **Natural monopoly or finite shared resource** – the activity involves a physically finite resource, or infrastructure whose competitive duplication would be wasteful or physically incoherent, such that unified stewardship serves residents better than competitive provision. Land, water, energy infrastructure, telecommunications infrastructure, transport infrastructure, the financial system, and natural resources satisfy this test.
- **Care labor under conditions of impaired consumer choice** – the activity constitutes care labor of the kind identified in Article III, Section 2, delivered under conditions where the recipient cannot meaningfully evaluate quality or exercise informed choice at the point of need, such that market discipline structurally cannot function as a quality safeguard. Healthcare, education, childcare, and elder care satisfy this test.

An activity satisfying neither test – including food production, construction, and general goods and services – is organized within the Worker Cooperative Sector under Article XX, subject to the essential-sector provisions of Article XXVI where applicable.

Where a new or emerging sector’s classification is contested, the Sortition Legislature applies this test by simple majority, subject to Constitutional Court review confirming the classification is consistent with this Section. Reclassification of an activity from Commons to cooperative organization, or from cooperative to Commons, follows the same process and is additionally subject to Section 1’s prohibition on any revision that creates private ownership of the means of production.

Section 3 – The Market Coordination Acknowledgment

The Commonwealth retains market coordination among worker cooperatives as the primary mechanism for allocating most goods and services. This choice is made not because market coordination is consistent with the full elimination of domination, but because the material conditions of a complex

modern economy have not produced a demonstrated alternative capable of coordinating production and distribution at scale without generating worse forms of concentrated power. Central planning at national scale has historically concentrated decision-making authority in ways that reproduce domination in new institutional forms. The cooperative market system is therefore a pragmatic response to current material conditions, not a final settlement.

The Commonwealth acknowledges that market competition among cooperatives generates its own structural pressures – toward cost reduction, productivity intensification, and the gradual accumulation of competitive advantage by larger or better-positioned federations – that the wage ratio cap, the antitrust provisions, and the Commons sector are designed to constrain but cannot fully eliminate. These contradictions are the primary object of ongoing constitutional self-analysis.

Future Constitutional Assemblies are explicitly invited to revisit this choice as material conditions change, as planning technology develops, and as the cooperative sector generates empirical evidence about whether market coordination can be transcended without reproducing the concentration of power it replaces. The three-sector structure may be revised under Article XXXVII, subject to the constraint that no revision may create private ownership of the means of production or diminish the Material Sufficiency Floor.

Article XX – The Worker Cooperative Sector

Section 1 – The Cooperative Mandate

Enterprises above a minimum size threshold – set by the [National Cooperative Standards Body](#), constituted under Article XXVII, [Section 6](#) – must be organized as worker cooperatives in which all workers are member-owners with equal governance rights. For purposes of determining whether the minimum size threshold is met, the [National Cooperative Standards Body](#) looks through arrangements where multiple nominally separate enterprises are commonly controlled, contractually bound to operate as a single economic unit, or structured with the primary purpose of remaining under the threshold, and aggregates them accordingly.

Section 2 – Ownership Structure

Cooperative ownership stakes may not be sold to non-workers, transferred to investors, or inherited. Workers receive stakes automatically after a qualifying period determined by the cooperative’s democratic governance. Upon departure, workers receive fair compensation for accumulated contribution; the stake itself reverts to the cooperative.

Civic integration status does not affect a worker’s ownership rights, governance rights, or surplus distribution rights within their cooperative. Worker-membership in a cooperative, including full ownership rights and democratic governance participation within that cooperative, is available to all residents regardless of civic integration status. Cooperative ownership rights are governed by this Article and are distinct from political membership rights conferred by full civic integration under Article XXXII.

Section 3 – Democratic Governance

Cooperative governance operates on the principle of one worker, one vote for all major decisions. Day-to-day management may be delegated to elected managers who are accountable to and recallable by worker-owners.

Section 4 – The Wage Ratio Cap

The total compensation – including wages, surplus distributions, and benefits – of the highest-paid worker in any cooperative may not exceed ten times the total compensation of the lowest-paid worker. This ratio may be adjusted downward but never upward by the [Sortition Legislature](#).

Section 5 – Cooperative Markets

Cooperatives compete with each other in markets for most goods and services. No cooperative may acquire a dominant market position that enables it to exercise power over other cooperatives or over consumers' access to essential goods. The [Financial Regulatory Body](#), constituted under Article XXVII, [Section 6](#), is the enforcement authority for this prohibition. Affected cooperatives and consumers have standing to bring complaints directly to the Body.

Section 6 – The Cooperative Development Bank

A publicly chartered [Cooperative Development Bank](#) provides startup financing and working capital to cooperatives at cost rather than for profit. The Bank is governed by a fifteen-member board, selected by sortition from the cooperative sector on staggered five-year non-renewable terms, and is accountable to the [Sortition Legislature](#).

The [Cooperative Development Bank](#) may not develop, maintain, or use any credit scoring system that assesses the creditworthiness of cooperatives or their members against historical financial records for the purpose of determining lending eligibility. This prohibition applies to internally developed scoring systems and to any third-party scoring data. Lending eligibility is determined exclusively through the Development Partnership process under [Section 7](#).

The Bank maintains portfolio health monitoring of all financed cooperatives for the sole purpose of early identification of financial distress and activation of support relationships. Portfolio health data may not be used to restrict, reduce, or recall financing, and may not be shared with any external entity without the consent of the cooperative. The [Citizen Oversight Panel](#) reviews portfolio monitoring practices annually and publishes findings through the [Transparency Engine](#).

Section 7 – The Development Partnership Process

The Bank assesses cooperative viability through a Development Partnership process that builds capacity alongside assessment. A Bank development team works with prospective cooperatives to refine the business model, identify capital needs, connect the cooperative to training and Commons infrastructure, and assess labor commitment. Lending decisions are made by rotating Peer Panels drawn from worker-members of established cooperatives in adjacent sectors, selected by sortition from a pool of volunteers, operating against published criteria. No application may be declined solely on the basis of absence of collateral, prior credit history, or members' personal financial history.

Essential sector cooperatives in underserved regions are eligible for Commons-backstop grants in addition to or in lieu of lending. The Bank maintains ongoing support relationships with all financed cooperatives, with distress signals triggering support rather than enforcement responses. At founding, Peer Panels are drawn from the [Constitutional Assembly](#)'s designees, with explicit sunset once the cooperative sector reaches one hundred established enterprises. See Article XXXIX, [Section 2](#).

Section 8 – The Cooperative Federation

Voluntary federations of cooperatives in related sectors may share research, training, supply chains, and mutual insurance. Federation membership is voluntary. Federations may not develop governance structures that concentrate power over member cooperatives. Federations conduct sector-knowledge pre-assessments of prospective cooperatives before applications reach the [Cooperative Development Bank](#); this role is advisory and the Bank is not bound by federation assessments. Cooperatives in sectors without an established federation proceed directly to the Bank’s Development Partnership process.

Article XXI – The Commons Sector

Section 1 – Commons Assets

The following assets are held in common by all residents of the Commonwealth:

- All land
- Water systems and water resources
- Energy generation infrastructure and distribution grids
- Telecommunications infrastructure
- Transportation infrastructure including roads, rail, ports, and airports
- The core financial system including payment infrastructure and the monetary authority
- Natural resources including minerals, forests, and fisheries
- The healthcare delivery system
- The education system at all levels
- The childcare and elder care systems

Section 2 – General Principles

All assets listed in [Section 1](#) are held in common permanently and may not be privatized in whole or in part by any legislative act, emergency declaration, or amendment of any kind, including under Article [XXXVII](#). Privatization of Commons assets constitutes arbitrary power over the survival of others within the meaning of Article [I](#), [Section 2](#), and is therefore foreclosed by the Anti-Domination Principle’s status as a hard limit under Article [XI](#), [Section 3](#).

Commons assets are managed exclusively to maximize use value for all residents; surplus generated flows to the Material Sufficiency Floor and Commons reinvestment under Article [XXII](#), [Section 8](#). Access to Commons assets may not be rationed on the basis of ability to pay, civic integration status, or any characteristic protected under Article [III](#). All Commons asset governance is fully transparent through the [Transparency Engine](#) under Article [XIII](#).

Section 3 – Water

Water is a biological necessity and its governance is a foundational obligation of the Commonwealth. Water systems and water resources are managed for universal access, ecological health, and inter-generational sustainability. Extraction, diversion, or degradation of water resources is subject to mandatory ecological impact assessment under Article [XXV](#). Pricing or rationing of water on the basis of ability to pay is prohibited. The rights of indigenous nations over water resources on or adjacent to returned land are determined through the Land Back negotiation process under Article [XXXV](#), and Commonwealth water governance does not supersede those rights.

Section 4 – Energy

Energy infrastructure is managed to provide universal access and to fulfill the Commonwealth’s obligations under the climate mandate of Article [XXV](#). Energy pricing may not create energy poverty – defined as a household spending more than a defined proportion of its income on energy, set by the relevant [Implementation Council](#) and subject to [Sortition Legislature](#) review. The transition of energy generation from extraction-based to renewable systems is a constitutional obligation whose timeline and escalation triggers are governed by Article [XXV](#). No new extraction-based energy infrastructure may be approved that is inconsistent with the current climate mandate targets.

Section 5 – Telecommunications

Telecommunications infrastructure is managed to provide universal access as a precondition of civic participation, education, and economic activity. Access may not be rationed on the basis of ability to pay or any characteristic protected under Article [III](#). The telecommunications infrastructure may not be used as an instrument of content surveillance, behavioral monitoring, or population tracking. Mass collection of communications or behavioral data through telecommunications infrastructure is prohibited and governed by Article [XXXIII](#), [Section 2](#). Network access is provided on equal terms to all users; no prioritization of content, source, or user class is permitted.

Section 6 – Transport

Transport infrastructure is managed for universal access with particular attention to regional equity, ensuring that rural and underserved communities are not systematically disadvantaged in access to Commonwealth services, economic activity, and civic participation. All significant transport infrastructure decisions are subject to ecological impact assessment under Article [XXV](#).

Article XXII – Land and Tenures

Section 1 – Residential Land

Persons occupy residential land through one of two mechanisms: Commons-Allocated Housing under Article [XXXI](#), [Section 3](#), which is the primary mechanism through which all persons access housing; or a Residential Tenure, recognized where a person has constructed a dwelling or made improvements whose assessed labor value exceeds twenty-five percent of the assessed replacement cost of the dwelling at the time of the claim. Residential Tenures are assessed by the [Housing Implementation Council](#) against published criteria.

No person may hold more than one Residential Tenure acquired through their own improvements simultaneously. Where a person who holds a Residential Tenure makes improvements to a second

dwelling that would otherwise qualify for a Residential Tenure, they must elect which dwelling retains the Tenure. Making this election does not affect the person’s right to occupy either dwelling; it determines which dwelling carries heritable tenure status. The non-elected dwelling is held as Commons-Allocated Housing – the person may continue to occupy it, but it returns to Commons housing stock rather than passing to their heirs upon their death or departure. The second dwelling is treated as Commons-Allocated Housing from the moment the improvements are made until the election is made, and as Commons-Allocated Housing thereafter if not elected.

Residential Tenures are secure, heritable within immediate family, and non-transferable on any market. They may be used as collateral for lending exclusively through the [Public Banking System](#) under Article [XXIII](#), [Section 2](#). Default on a Residential Tenure used as collateral may not result in loss of that Tenure; the [Public Banking System](#)’s remedy in default is limited to a claim on improvement compensation proceeds at the point of return to Commons stock. Upon the holder’s death, the Tenure passes to immediate family members who occupy the dwelling as their primary residence. Where no inheriting party occupies the dwelling as their primary residence for a continuous period exceeding three years, the Tenure expires and the dwelling returns to Commons housing stock. Fair compensation for improvements is paid to the estate at assessed replacement cost. Temporary non-occupancy due to medical incapacity, essential service obligations, or other circumstances recognized by the [Housing Implementation Council](#) against published criteria does not count toward the three-year threshold.

Section 2 – Inherited Tenures

A Residential Tenure received through inheritance is held as an Inherited Tenure, distinct from any Residential Tenure acquired through the holder’s own improvements. Where inheritance would result in a person holding more than one Inherited Tenure, the heirs determine which Tenure to retain and which to return to Commons stock with fair compensation paid to the estate. No person may hold more than two Tenures in total at any time, regardless of how they were acquired. The three-year non-occupancy clock is suspended on all affected properties until the heirs have made their determination. Upon determination, the retained Tenure is subject to normal non-occupancy provisions; properties returned to Commons stock return immediately with improvement compensation paid to the estate.

Section 3 – Productive Tenures

Cooperatives may hold Productive Tenures over land used for cooperative operations. Productive Tenures are distinct from Residential Tenures in all respects and are governed by this Section and Article [XX](#).

Cooperatives access Productive Tenures through one of two mechanisms: Commons allocation administered by the relevant [Implementation Council](#) for the land’s domain, which is the primary mechanism; or a Builder’s Productive Tenure, recognized where a cooperative has constructed its premises or made improvements whose assessed labor value exceeds fifty percent of the assessed replacement cost at the time of the claim, assessed by the relevant [Implementation Council](#) against published criteria.

Productive Tenures are secure and non-transferable on any market. When a cooperative dissolves, relocates, or permanently vacates its premises, the tenure returns to Commons stock. The cooperative receives fair compensation for improvements at assessed replacement cost. Where a dissolving cooperative wishes its premises to pass to a successor cooperative in the same or adjacent sector, a managed non-market transfer may be approved by the relevant [Implementation Council](#).

No price is set by market negotiation in any transfer; compensation is assessed at replacement cost of improvements only.

Productive Tenures may be used as collateral for lending exclusively through the [Cooperative Development Bank](#) under Article XX, [Section 6](#), or the [Public Banking System](#) under Article XXIII, [Section 2](#). Default on a Productive Tenure used as collateral may not result in loss of that tenure; the lending institution's remedy in default is limited to a claim on improvement compensation proceeds at the point of return to Commons stock.

Section 4 – Acknowledgment

The Commonwealth acknowledges that the Commons allocation system, as the primary mechanism for housing access, cannot perfectly replicate the granular individual choice a housing market provides. Persons seeking a specific dwelling they did not build receive Commons-Allocated Housing governed by objective criteria rather than market selection. This constraint is accepted because the alternative – a market in housing – reproduces domination by conditioning access to a fundamental right on financial resources. Future Constitutional Assemblies are explicitly invited to revisit the allocation mechanism as Commons housing stock matures, allocation systems develop, and empirical evidence accumulates about whether more responsive allocation is achievable without reproducing market domination.

Section 5 – Land Value and Displacement Protection

Land value generated by surrounding community development, infrastructure investment, and collective social activity may not be privately captured. Since all tenure forms recognized under this Article are non-transferable on any market, appreciation in land value remains with the Commons and is realized upon reversion of any tenure to Commons stock. The Commons Land Fund, which supports housing infrastructure investment and the Material Sufficiency Floor, is funded through Commons sector operating surplus and [Monetary Authority](#) allocation under Article XXIII, [Section 4](#).

Section 6 – Displacement Protection

No person occupying a dwelling through Commons-Allocated Housing or a Residential Tenure may be displaced without a public interest determination by a regional Commons body, provision of equivalent replacement housing prior to displacement, full compensation for improvements at assessed replacement cost for Residential Tenure holders, and access to [Constitutional Court](#) review. This protection applies without exception to every person on Commonwealth territory regardless of occupancy status.

Section 7 – Commons Governance

Commons assets are governed at the level appropriate to their scope. Local Commons are governed by local community assemblies. Regional Commons are governed by regional assemblies. National Commons are governed by the [Sortition Legislature](#) with implementation by specialized Commons management bodies. All Commons governance is fully transparent and subject to public participation.

Section 8 – Operating Principle

Commons entities are managed to maximize use value for their communities, not to generate surplus for extraction. Where surplus is generated, it flows directly to the Material Sufficiency Floor and Commons reinvestment.

Article XXIII – Finance and Money

Section 1 – Prohibited Financial Activities

The following financial activities are prohibited as mechanisms of rent extraction inconsistent with the anti-domination principle:

- Speculative derivative instruments whose primary function is extraction of value without production
- Private equity acquisition of cooperatives for asset stripping or resale
- Any financial instrument that creates shareholder extraction from worker cooperative surplus
- High-frequency trading designed to exploit information asymmetries
- Private lending – the provision of credit by any non-Commons entity in exchange for interest, fees, or any other form of return.

All lending functions are performed exclusively by Commons institutions: the [Public Banking System](#) for personal lending, the [Cooperative Development Bank](#) for cooperative lending, and the [Commons Investment Fund](#) for infrastructure investment. No person, cooperative, or other entity may extend credit for return outside these institutions. Informal lending between individuals without interest or fees is not governed by this prohibition. Residential Tenure lending is available exclusively through the [Public Banking System](#) under [Section 2](#). Productive Tenure lending is available through the [Public Banking System](#) or the [Cooperative Development Bank](#) under [Article XX, Section 6](#). No tenure of either type may be used as collateral with any entity other than these two Commons lending institutions.

Section 2 – Public Banking

A [Public Banking System](#) provides savings, checking, and personal lending services to all residents at cost. The system is a Commons institution governed by the [Sortition Legislature](#).

Section 3 – The Monetary Authority

Money creation is a public function of the democratically governed [Monetary Authority](#), accountable to the [Sortition Legislature](#). Private money creation through fractional reserve lending is prohibited.

The [Monetary Authority](#)'s allocation to Commons operations and the Material Sufficiency Floor is calibrated against real productive capacity in the Commonwealth economy. Monetary allocation is a stabilizing mechanism for timing mismatches between Commons revenue and Floor obligations; it is not a substitute for adequate cooperative surplus contributions. The [Monetary Authority](#) publishes quarterly assessments of the relationship between money creation, productive capacity, and price stability through the [Transparency Engine](#). Where the [Monetary Authority](#) determines that allocation is substituting for structurally inadequate contribution rates rather than smoothing

timing variation, it is constitutionally obligated to report this finding to the [Sortition Legislature](#) within thirty days. The Legislature must convene a mandatory review session within sixty days of receiving such a report.

A structural-dependence finding triggers an automatic minimum increase in cooperative surplus contribution rates, set jointly by the [Monetary Authority](#) and the [Financial Regulatory Body](#) at the level necessary to close the identified structural gap. This automatic increase takes effect at the mandatory review session unless the [Sortition Legislature](#) affirmatively rejects it by the same supermajority required to lower contribution rates under [Section 6](#), and publishes its reasoning through the [Transparency Engine](#). Rejection does not suspend future structural-dependence findings or future automatic increases arising from them.

Section 4 – The Commons Investment Fund

Long-term infrastructure investment is financed through the [Commons Investment Fund](#), funded by cooperative surplus contributions, Commons sector operating surplus, and [Monetary Authority](#) allocation. These fund the Commons Land Fund under Article [XXI](#), [Section 2](#). All allocations are fully transparent.

Section 5 – Enforcement

The [Financial Regulatory Body](#), constituted under Article [XXVII](#), is the enforcement authority for the prohibitions in this Article. Investigation findings are submitted to the [Security Enforcement Review Panel](#) for authorization of specific enforcement actions under Article [XXXIII](#), [Section 6](#). Financial violations with criminal dimensions are referred to the relevant justice [Implementation Council](#). The [Monetary Authority](#) is required to report to the [Financial Regulatory Body](#) any financial flows it identifies as potentially inconsistent with this Article; this reporting obligation does not give the [Monetary Authority](#) independent enforcement authority.

Section 6 – Cooperative Surplus Contributions

The [Sortition Legislature](#) sets cooperative surplus contribution rates at levels demonstrably sufficient to fund the Material Sufficiency Floor obligations established in Article [II](#), together with Commons sector operating surplus and other Commons revenue streams. Contribution rates may not be set below the level the [Monetary Authority](#) and the [Financial Regulatory Body](#) jointly assess as necessary to fund Floor obligations without structural dependence on monetary allocation.

The [Transparency Engine](#) monitors in real time the gap between Material Sufficiency Floor obligations and Commons revenue from all sources, including cooperative surplus contributions, Commons sector operating surplus, ecological resource revenues, and [Monetary Authority](#) allocation. Where the monitored gap indicates that Floor obligations are not fully funded on a structural basis, a public alert is issued automatically and the Legislature must convene a mandatory review session within sixty days.

Contribution rates are reviewed every five years alongside the climate mandate under Article [XXV](#). They may be raised by simple legislative majority and may be lowered only by supermajority vote with a published funding impact assessment confirmed by the [Financial Regulatory Body](#). No reduction in contribution rates may take effect if the [Monetary Authority](#) has issued a structural dependence finding under [Section 3](#) within the preceding two years.

Section 7 – Floor Growth Allocation

Meeting Material Sufficiency Floor obligations satisfies the minimum requirement of this Article but does not exhaust it. No less than fifteen percent of the annual real growth in cooperative surplus contributions and Commons sector operating surplus, measured year-over-year and confirmed by the [Financial Regulatory Body](#), must be directed to expanding the scope, quality, or standard of Material Sufficiency Floor provision, beyond whatever level current obligations already require. This requirement may be satisfied only from real growth in cooperative surplus contributions and Commons sector operating surplus as so measured; [Monetary Authority](#) allocation, and any revenue collected under [Section 2](#), may never be counted toward it. In a year without qualifying real growth, no allocation is required. The Legislature publishes, through the [Transparency Engine](#), an annual accounting of qualifying growth and the specific Floor expansions it funded. Persistent qualifying growth with no corresponding Floor expansion over three consecutive years makes that year’s accounting subject to Legislative Decision Review under Article [XIV](#), [Section 4](#), triggering the mandatory reconsideration session that intervention type provides.

Section 8 – Personal Sector Wealth Transfer Contribution

Productive and Residential Tenures are governed exclusively by the inheritance provisions of Article [Section 2](#) and are not affected by this Section. A wealth transfer contribution applies only to Personal Sector savings, personal property, and other non-tenure assets passing by inheritance or bequest. The contribution phases in linearly on the portion of a bequest to any single heir that exceeds five times the Commonwealth median annual wage, reaching a maximum rate on the portion exceeding twenty times the Commonwealth median annual wage, at rates set by the [Sortition Legislature](#) and reviewed on the same five-year cycle as cooperative surplus contribution rates under [Section 6](#). Bequests below five times the Commonwealth median annual wage are exempt entirely, and ordinary personal property of primarily sentimental or functional rather than financial value is exempt regardless of value. Revenue is directed to the Material Sufficiency Floor and logged through the [Transparency Engine](#).

Article XXIV – Intellectual Property and Innovation

Section 1 – Abolition of Perpetual Rent

Patents, perpetual copyright, and other instruments of permanent rent extraction from intellectual works are abolished. Inventors, creators, and researchers are entitled to fair compensation for their labor of creation, not permanent monopoly rents from others’ use of their creations. The right of attribution – to all persons involved in the invention, creation, research, or development of an intellectual work – is permanent and may not be waived or transferred.

Section 2 – The Knowledge Commons

All research outputs from publicly funded institutions immediately become public domain. Knowledge produced within the Commonwealth is treated as a Commons asset.

Section 3 – Innovation Incentives

Innovation is incentivized through public research funding, innovation prizes for solutions to defined public challenges, and the intrinsic cooperative self-interest of worker-owners. Prize-winning

innovations become public domain upon award.

Section 4 – Creator Protections and Principled Duration

Creators of artistic and literary works receive protection against unauthorized reproduction. The duration of this protection is tied to the compensation structure:

- Works for which the creator has accepted a public innovation prize or Commons commission enter public domain immediately upon award.
- Works produced independently receive protection for a period sufficient to allow genuine market compensation recovery. The outer protection limit is set at the point at which empirical revenue data for the relevant creative domain shows median annual revenue has declined below five percent of peak – currently assessed at fifteen years from first publication, reflecting empirical revenue curves rather than an arbitrary number. This assessment is subject to revision by the [Sortition Legislature](#) based on updated empirical data.
- Moral rights – the right of attribution and the right of integrity – are permanent and may not be waived or transferred.
- At the outer limit, all works enter the Knowledge Commons unconditionally.

Article XXV – Ecological Limits

Section 1 – Economic Purpose

Economic growth is not a goal of the Commonwealth’s economic system. The goal is material sufficiency for all residents within ecological limits. Steady-state sufficiency takes precedence over expansion.

Section 2 – Rights of Natural Systems

Natural ecosystems possess rights to exist, regenerate, and flourish. These rights are justiciable before the [Constitutional Court](#). Commons governance of land, water, and natural resources is conducted as stewardship, not extraction.

Section 3 – Ecological Impact Assessment

All economic planning, Commons investment, and significant cooperative activity is subject to mandatory ecological impact assessment. Hard limits on ecosystem disruption may not be overridden by democratic majorities.

Section 4 – Climate Mandate

The Commonwealth operates under a rolling climate mandate reviewed by the [Sortition Legislature](#) every five years, with automatic escalation triggers tied to objective scientific metrics.

Section 5 – Emissions Fee

In addition to the emissions standards enforced by the [Environmental Regulatory Body](#) under [Section 6](#), an emissions fee is levied on Worker Cooperative Sector and Commons Sector production, priced by the [Environmental Regulatory Body](#) against the same objective scientific metrics that govern the climate mandate, and reviewed on the same five-year cycle with the same automatic escalation triggers. The fee applies only to activity within the hard limits set under [Section 3](#); it has no authority to raise, waive, or substitute for those hard limits, which remain enforced directly regardless of any resident’s or cooperative’s ability or willingness to pay. The fee does not apply to Personal Sector consumption. Revenue is divided between the [Commons Investment Fund](#), prioritizing investment that reduces future emissions, and the Material Sufficiency Floor, in a published split counted as ecological resource revenue under [Section 6](#) and logged in full through the [Transparency Engine](#).

Article XXVI – Essential Labor and Material Production

Section 1 – The Foundational Obligation

The Commonwealth acknowledges that the material rights guaranteed in Article [II](#) depend on sufficient human labor to produce food, deliver healthcare, teach students, build housing, and maintain infrastructure. The system is designed to make this labor attractive rather than coerced.

Section 2 – Essential Labor

Essential labor is organized either through cooperatives under Article [XX](#) or directly through Commons institutions under Article [XXI](#), depending on the sector’s classification under Article [XIX](#), [Section 2](#).

Cooperative-organized essential sectors. Cooperatives in essential sectors – food production, construction, and other essential goods and services organized under Article [XX](#) – are subject to constitutional minimum compensation floors. The lowest-paid worker in any essential sector cooperative may not earn below a defined ratio of the overall cooperative sector wage median, set by the [Sortition Legislature](#) and may be raised but not lowered.

Commons institution essential labor. Workers in healthcare, education, childcare, and elder care are directly employed by Commons institutions under Article [XXI](#) rather than organized as worker-owners, and receive no surplus distribution or ownership stake. The lowest-paid worker in any such Commons institution may not earn below a compensation floor set by the [Sortition Legislature](#), calibrated to remain financially equivalent to that of an essential-sector cooperative worker-owner unless the Legislature determines a different floor is warranted for a specific role or institution. This floor may be raised but not lowered. The relevant [Implementation Council](#) for each Commons institution sets an internal compensation structure consistent with this floor; compensation structures are published and logged through the [Transparency Engine](#), and reviewed annually by the [Citizen Oversight Panel](#) embedded within the [Implementation Council](#) under Article [XII](#).

No coercive assignment of persons to labor under either subsection is permissible under any circumstances.

Section 3 – Training Pipelines

Training and education pipelines for all essential vocations are Commons institutions, fully funded, regionally distributed, and free to all who enter them. Geographic distribution is designed to address the concentration problem that depletes essential services in rural and underserved areas.

Persons enrolled in essential sector training programs receive a training stipend for the duration of their enrolled program. The stipend is set at no less than the applicable essential sector compensation floor established in [Section 2](#), ensuring that entering a training pipeline is financially equivalent to entry-level essential sector employment. The stipend may be raised above this floor by the [Sortition Legislature](#), including in response to pipeline monitoring triggers under [Section 6](#). The stipend may not be reduced below the [Section 2](#) floor by any legislative act or [Implementation Council](#) decision. Stipends are administered by the relevant Commons training institution and logged through the [Transparency Engine](#).

Section 4 – Voluntary Service Incentives and Automatic Escalation

Persons who complete defined service periods in underserved essential roles receive enhanced Commons benefits including priority weighting in Commons-Allocated Housing under Article [XXXI](#), [Section 6](#), extended sabbatical rights, and enhanced retirement security. This service is voluntary, subject to the prohibition on coercive assignment established in [Section 2](#).

The relevant [Implementation Council](#) maintains a published Incentive Escalation Schedule, tiered against the severity of a shortfall determined under [Section 6](#) or [Section 7](#), establishing in advance which specific enhanced benefits activate at each tier of severity. Later tiers may not offer fewer benefits than earlier tiers.

Upon a forward-looking shortfall identified under [Section 7](#), or a reactive threshold crossing under [Section 6](#), escalation to the corresponding tier is automatic and immediate, activating at the same time as the mandatory legislative review session those Sections require, rather than awaiting that session’s outcome. The [Sortition Legislature](#) retains authority to expand incentives beyond the published schedule at its review session, and may revise the Escalation Schedule itself for future shortfalls, but may not suspend or reduce benefits already activated for persons currently serving.

Escalating benefits may include additional individual incentives as determined by the [Sortition Legislature](#), subject to the wage ratio cap of Article [XX](#), [Section 4](#), and may separately include enterprise- or federation-level capacity investment – including but not limited to expanded Commons-backstop grants under Article [XX](#), [Section 7](#), preferential [Cooperative Development Bank](#) financing terms, or priority Productive Tenure allocation – which is not compensation to any individual worker and is not subject to that cap. Escalating benefits may never take the form of coercive assignment of any kind.

Escalation Schedules are published and logged through the [Transparency Engine](#) and reviewed every five years alongside the climate mandate under Article [XXV](#).

Section 5 – Automation of Burdensome Labor

The Commonwealth actively pursues automation of the most physically dangerous, repetitive, or degrading elements of essential work. Efficiency gains from automation in essential sectors flow to the Commons rather than to cooperative surplus, and should reduce the labor burden instead of displacing workers.

Section 6 – Essential Sector Pipeline Monitoring

Each [Implementation Council](#) with responsibility for an essential sector maintains a continuous public register of student enrollment in training pipelines for that sector, projected workforce needs over a ten-year horizon, and current workforce capacity. Methodology for projections and threshold determinations is published in full through the [Transparency Engine](#) and reviewed every five years alongside the climate mandate under Article [XXV](#).

When enrollment in any essential sector pipeline falls below a threshold determined by the relevant [Implementation Council](#) to indicate risk of future workforce insufficiency, the Council is constitutionally obligated to report immediately to the [Coordination Assembly](#) and to the [Sortition Legislature](#). The Legislature must convene a mandatory review session within sixty days to assess and strengthen voluntary incentive mechanisms under [Section 4](#).

[Implementation Councils](#) report pipeline status annually to the [Coordination Assembly](#). The Assembly identifies cross-sector patterns and refers systemic findings to the Legislature with recommended responses. This remains subject to the prohibition on coercive assignment established in [Section 2](#), even when pipeline thresholds are crossed.

Section 7 – Forward-Looking Capacity Targets

In addition to the threshold monitoring established in [Section 6](#), each [Implementation Council](#) with responsibility for an essential sector sets forward-looking workforce capacity targets, projected over the same ten-year horizon, rather than relying solely on reactive enrollment monitoring. Targets are derived from projected demand for the sector’s output – including, where relevant, projected population growth, immigration trends under Article [XXXI](#), and any housing gap identified under Article [XXXI](#), [Section 6](#) – rather than from current enrollment or current workforce levels alone.

For the construction sector specifically, capacity targets are calibrated against the [Housing Implementation Council](#)’s housing gap projections under Article [XXXI](#), [Section 6](#), and are set at a level intended to prevent a housing gap from arising, not merely to close one once identified.

Where projected capacity is forecast to fall short of a forward-looking target at any point within the ten-year horizon, the responsible [Implementation Council](#) is constitutionally obligated to report this finding to the [Coordination Assembly](#) and the [Sortition Legislature](#) immediately upon the shortfall’s identification, without waiting for the reactive enrollment threshold of [Section 6](#) to be crossed. The Legislature must convene a mandatory review session within sixty days to strengthen voluntary incentive mechanisms under [Section 4](#), expand training pipeline capacity under [Section 3](#), or both.

Forward-looking targets and their underlying methodology are published in full through the [Transparency Engine](#) and reviewed every five years alongside the climate mandate under Article [XXV](#), consistent with [Section 6](#). This remains subject to the prohibition on coercive assignment established in [Section 2](#), even where forward-looking targets are unmet.

Section 8 – Food Stability Implementation

Food production remains within the Worker Cooperative Sector under Article [XX](#) and is not converted to direct Commons provision. The food security right guaranteed under Article [II](#) is instead delivered as an unconditional entitlement to a defined basket of staple foods, redeemable by any resident at any food-producing or food-retailing cooperative. Redeeming cooperatives are reimbursed at cost by the Commons through the mechanism established in [Section 6](#). The entitlement is not means-tested, is not reduced by a resident’s other income or purchases, and is not affected by price movement in the non-entitlement portion of the food market. The composition of the staple basket

is set by the relevant [Implementation Council](#), published through the [Transparency Engine](#), and may be expanded but not narrowed. Hospitality, prepared food, and dining services are not part of this entitlement and are ordinary Worker Cooperative Sector economic activity governed by [XX](#) in full.

Section 9 – Essential Goods Market Concentration

The prohibition on dominant market positions under [Section 5](#) extends explicitly to any cooperative or federation of cooperatives that withholds, stockpiles, or restricts the supply of a staple food item under [Section 8](#) for the purpose of affecting its price or availability. The [Financial Regulatory Body](#) monitors staple food supply chains for this purpose on an ongoing basis, in addition to responding to complaints. This Section governs enterprise-level conduct only; nothing in this Article establishes rationing or purchase limits on individual residents, whose entitlement under [Section 8](#) remains unconditional regardless of market conditions.

Article XXVII – Regulatory Commons Bodies

Section 1 – Definition and Purpose

Regulatory Commons Bodies are a distinct institutional category exercising independent regulatory authority within legislatively defined mandates. They combine democratic legitimacy, technical competence, and affected community representation to set and enforce standards that protect Commons assets, public health, worker safety, and ecological limits.

Section 2 – Tripartite Composition

Each Body has fifteen members, composed of three equal streams of five. The Democratic Stream consists of persons selected by sortition from the general civic membership with no financial interest in the regulated sector. The Expert Stream consists of persons selected by sortition from a domain-specific qualification pool assessed by the [Qualification Commons](#) under Article [VII](#), [Section 8](#). The Affected Community Stream consists of persons selected by sortition from communities most directly affected by the regulatory domain. The [Sortition Legislature](#) may set a larger total for a specific Body by supermajority vote, provided the three streams remain equal in size.

Section 3 – Sector Exclusion

Persons who hold an elevated or non-standard stake in a specific regulatory outcome – through executive or managerial roles, federation leadership positions, a currently pending or recently adjudicated matter before that Body involving their own cooperative, or income from outside consulting, advisory, or contracted work performed for entities in the regulated sector – are excluded from all three streams. Ordinary worker-ownership under Article [XX](#), held on equal terms with other members of a cooperative in the regulated sector, does not by itself disqualify.

The time period defining a "recently adjudicated" matter under this Section, and the threshold defining disqualifying outside consulting, advisory, or contracted income, are set by the [Sortition Legislature](#), reviewed annually, independent of the five-year membership term structure of [Section 5](#), and published through the [Transparency Engine](#).

Section 4 – Mandate and Independence

The [Sortition Legislature](#) defines each Body’s mandate. Within that mandate, the Body acts independently. Regulated entities may appeal regulatory decisions only to the [Constitutional Court](#) on the specific constitutional question of whether the Body exceeded its mandate – not on policy grounds.

Section 5 – Terms and Transparency

Members serve five-year staggered non-renewable terms. All deliberations, evidence considered, dissenting opinions, enforcement actions, and communications with regulated entities are logged in real time by the [Transparency Engine](#).

Section 6 – Major Regulatory Domains

The following Regulatory Commons Bodies are constitutionally mandated:

- The [Environmental Regulatory Body](#), operating under Article [XXV](#), sets and enforces emissions standards, water quality standards, land use requirements, and extraction limits. It monitors and audits enterprises regularly to ensure all standards are being met, and submits investigation findings to the [Security Enforcement Review Panel](#) under Article [XXXIII](#), [Section 6](#) for authorization of specific enforcement actions.
- The [Public Health and Safety Regulatory Body](#) oversees pharmaceutical safety, medical device safety, food safety, and public health standards.
- The [Worker Safety Regulatory Body](#) sets minimum workplace safety floors below which cooperative democratic decisions may not fall.
- The [Financial Regulatory Body](#) enforces the prohibitions enumerated in Article [XXIII](#), monitors financial flows within the cooperative and Commons sectors for violations, and classifies new financial instruments as permitted or provisionally prohibited. It also monitors cooperative market structures for the emergence of dominant positions that enable power over other cooperatives or over consumers’ access to essential goods, as prohibited by Article [XX](#), [Section 5](#). It may order structural remedies including cooperative disaggregation, mandatory supply access, and federation restructuring. Investigation findings requiring enforcement action are submitted to the [Security Enforcement Review Panel](#) under Article [XXXIII](#), [Section 6](#).
- The [National Cooperative Standards Body](#) sets and enforces the minimum size threshold at which an enterprise must organize as a worker cooperative under Article [XX](#), [Section 1](#), including determinations of commonly-controlled or contractually-bound enterprise clusters for threshold purposes under that Section. It coordinates with the [Financial Regulatory Body](#) on cases where enterprise-structuring findings are also relevant to an assessment of dominant market position under Article [XX](#), [Section 5](#), but its own mandate is limited to pre-formation classification and does not extend to post-formation market conduct.

Section 7 – Financial Regulation

Provisional prohibitions referenced in [Section 6](#) are referred to the [Sortition Legislature](#) within thirty days of classification. If the Legislature does not act within ninety days of referral, the provisional

prohibition becomes permanent. The Legislature may lift any prohibition by simple majority vote. The [Financial Regulatory Body](#) may not itself create new categories of permitted financial activity – that authority rests with the Legislature.

Additional Regulatory Bodies may be created by the [Sortition Legislature](#) by supermajority vote. Constitutionally mandated Bodies may not be dissolved without a constitutional amendment under Article [XXXVII](#).

Title VII – External Relations

Article XXVIII – The Foreign Relations Council

Section 1 – Composition

The [Foreign Relations Council](#) is a standard body of twelve members serving three-year terms (staggered so that four rotate out annually), selected from a qualification pool with demonstrated relevant expertise in international law, economics, diplomacy, regional affairs, and languages.

Section 2 – Function

The Council manages ongoing diplomatic relationships, negotiates proposed international agreements, and represents the Commonwealth in bilateral foreign relations. All negotiations are logged in real time by the [Transparency Engine](#). Sensitive ongoing negotiations may be withheld from public disclosure for a maximum of one year. In multilateral settings where the [Residual Coordination Council](#) provides Commonwealth representation under Article XVIII, the [Foreign Relations Council](#) retains primacy over all substantive positions articulated by that representation. The Council must provide timely sign-off on substantive positions to prevent diplomatic delay; unreasonable delay in sign-off may be referred to the [Constitutional Court](#) for expedited review.

Section 3 – Mandate Constraints

The Council may negotiate but not conclude binding international agreements. All treaties require ratification by the [Sortition Legislature](#). The Council is explicitly prohibited from negotiating any agreement that creates dependency relationships or coercive power over another nation’s survival or self-determination. It has no authority over domestic policy under any circumstances.

Section 4 – Conflict of Interest

Members of the Council are subject to the same conflict of interest, disclosure, and sector exclusion provisions applicable to all governance roles under Article VI, [Section 4](#), and the same post-service employment prohibitions as [Sortition Legislature](#) members under Article IX, [Section 4](#). Members may not hold financial interests in any entity with active commercial relationships with nations under active negotiation.

Article XXIX – The Anti-Imperialism Principle

Section 1 – Constitutional Prohibition

The Commonwealth may not enter into any relationship with any other nation, people, or international institution that creates dependency, extracts value without equivalent return, or gives the Commonwealth coercive power over the survival or self-determination of others.

Section 2 – Specific Prohibitions

- Maintaining military bases or permanent military presence in other countries
- Using currency, credit, or financial system access as instruments of foreign policy coercion
- Holding other nations’ debt as leverage
- Providing conditional aid that requires policy compliance from recipients

- Conducting covert operations that interfere in other nations’ internal governance
- Entering trade relationships designed to create dependency in the other party

Section 3 – Tariff Policy

Ordinary protective or revenue tariffs are not prohibited by this Article and are distinct from the dependency-creating and coercive trade practices barred under [Section 2](#). Any tariff must be narrow in scope, tied to a specific and publicly stated purpose – such as protecting Worker Cooperative Sector wages and labor standards under Article [XX](#) from underpriced production that would not meet those standards domestically, or shielding a defined nascent domestic industry for a stated developmental purpose – and must include a sunset date at enactment, not to exceed ten years, renewable only by an affirmative Legislative vote with published justification. A tariff may not be maintained indefinitely by repeated renewal absent a renewed and specific finding of ongoing purpose. A tariff structured or applied to create dependency in a trading partner, to coerce policy compliance, or to substitute for the prohibitions in [Section 2](#) is prohibited regardless of its stated purpose.

Section 4 – Positive Obligations

The Commonwealth actively shares scientific knowledge, medical research, agricultural technology, and renewable energy systems as global Commons. Humanitarian aid is provided whenever possible and without conditions. The Commonwealth participates in and advocates for genuinely multilateral international institutions with equal voice regardless of economic size. Indigenous nations with whom the Commonwealth has completed Land Back agreements under Article [XXXV](#) are among the priority relationships under these positive obligations; sovereignty recognition is the beginning of a relationship, not the end of one.

Section 5 – Collective Defense

The Commonwealth may participate in genuinely multilateral defense arrangements provided they do not require the development of offensive capability prohibited under Article [XXX](#), the establishment of permanent military presence outside Commonwealth territory, or the subordination of Commonwealth foreign policy to any other nation’s direction. The tension between collective defense obligations and the anti-imperialism principle is acknowledged; the [Treaty Review Body](#) under [Section 6](#) assesses all proposed collective defense arrangements for compliance with both.

Section 6 – Treaty Review

An independent [Treaty Review Body](#), a standard body of twenty members serving four-year terms selected from the international law expert qualification pool, reviews all proposed international agreements before ratification for compliance with the anti-imperialism principle and [Section 5](#). Any agreement found to create dependency relationships or coercive power over another nation may not be ratified regardless of legislative majority.

Section 7 – Human Rights and Non-Interference

The Commonwealth acknowledges that the anti-domination principle does not stop at its borders. Where persons in neighboring or other states experience systematic domination by their own gov-

ernments or other powerful actors, the Commonwealth’s commitment to human rights generates obligations of solidarity that must be reconciled with the anti-imperialism principle of this Article.

The Commonwealth fulfills these obligations exclusively through non-coercive means: unconditional welcome to persons fleeing persecution under Article XXXI; provision of humanitarian aid, medical assistance, and knowledge sharing without conditions under Section 4; advocacy within genuinely multilateral institutions for universal human rights standards; and material support to non-governmental mutual aid organizations and human rights documentation bodies operating in affected nations.

The Commonwealth may not fulfill solidarity obligations through economic sanctions, conditional aid requiring governance changes, funding of political opposition or regime change organizations, covert operations, or military action regardless of humanitarian framing. These prohibitions apply without exception. The use of humanitarian language to justify interference is itself a constitutional violation.

The Foreign Relations Council (Article XXVIII) determines whether any proposed solidarity action constitutes permissible non-coercive support or prohibited interference, against published criteria developed in consultation with the Treaty Review Body. Determinations are subject to Constitutional Court review. All solidarity activities and their funding are logged in full through the Transparency Engine.

The Commonwealth maintains transparent public documentation of human rights conditions in all nations with which it has diplomatic relationships, published annually through the Transparency Engine. This documentation serves the Commonwealth’s civic membership and the international community; it is not an instrument of foreign policy pressure.

Article XXX – Defense and Nuclear Posture

Section 1 – Defensive Sufficiency

The Commonwealth maintains military capacity sufficient for genuine territorial defense and no more. Force design is oriented exclusively toward defense. The Commonwealth does not maintain offensive power projection capacity beyond its borders.

Section 2 – Doctrinal Orientation

Force design is explicitly structured around denial rather than punishment. Ground forces are optimized for territorial defense, not expeditionary deployment. Air forces are oriented toward air superiority over Commonwealth territory, not long-range strike capability. Naval forces are configured for coastal and exclusive economic zone defense, not blue-water power projection. Long-range precision strike systems whose primary design purpose is offensive are prohibited.

Section 3 – Military Governance

Military leadership is civilian-accountable. The Implementation Council overseeing defense (Article XVI) is civilian, selected by sortition, with full access to all military operations and decisions. The military budget is constitutionally capped as a percentage of GDP under Section 9 and may not be increased by simple legislative majority.

Section 4 – Nuclear Posture

The Commonwealth possesses the minimum number of nuclear weapons necessary to maintain credible second-strike capability. The arsenal is constitutionally capped and designed exclusively for second-strike purposes. First-strike capable systems are prohibited.

Section 5 – No-First-Use

The Commonwealth will never use nuclear weapons against a non-nuclear state under any circumstances. The Commonwealth will never use nuclear weapons first against a nuclear-armed state. This commitment is constitutionally entrenched and cannot be overridden by any emergency declaration, executive decision, or simple legislative majority.

Section 6 – Nuclear Use Authorization Council

A [Nuclear Use Authorization Council](#) of eight persons, selected by sortition and serving staggered two-year non-renewable terms in continuous session with no other governance role, holds sole nuclear launch authorization. Authorization thresholds:

- Verified incoming nuclear attack confirmed by independent sensors: six of eight members required
- Any ambiguous or escalatory scenario: unanimous authorization required plus [Constitutional Court](#) emergency review, completed within the time the Council determines remains before authorization would otherwise lapse under [Section 7](#); if review cannot be completed in that time, authorization does not issue
- Any first use scenario: constitutionally prohibited regardless of vote

Section 7 – The Authorization Window

Unanimous authorization under an ambiguous or escalatory scenario lapses automatically if not acted upon, and does not carry over to a materially changed situation. As with the seventy-two-hour gap in Article [XVII](#), this Constitution acknowledges that compressing constitutional review into a live nuclear crisis is a genuine vulnerability that cannot be fully designed away. The fail-safe default in every case where required review is incomplete, doubtful, or contested is that authorization does not issue.

All eight members are publicly identified, subject to full transparency requirements, and recallable by legislative supermajority.

Section 8 – Defensive Posture Review

The [Defensive Posture Review Body](#), a standard body of sixteen members serving four-year terms selected from the strategic and arms control studies qualification pool, conducts mandatory public review of all military force structure, doctrine, procurement, and capability every four years. The Body classifies all major capabilities as defensive-primary or dual-use through a published Capability Classification Protocol; offensive-primary systems are constitutionally prohibited. Review findings are published in full through the [Transparency Engine](#). The Body may refer findings to the [Constitutional Court](#) for constitutional review. Members are subject to the sector exclusion provisions of Article [XXVII](#), [Section 3](#) – persons with current or recent employment relationships with defense contractors or the military are excluded from the qualification pool.

Section 9 – Military Budget Cap

Military expenditure may not exceed two percent of Commonwealth GDP in any fiscal year. Expenditure above one and one-half percent requires a supermajority legislative vote with published justification. Any increase beyond two percent requires supermajority legislative vote, [Constitutional Court](#) review confirming consistency with the defensive sufficiency principle, and a national referendum. The budget cap is cross-referenced with Article [XXIII](#)'s fiscal provisions.

Section 10 – Disarmament Commitment

The Commonwealth actively pursues verified multilateral nuclear disarmament and commits to reduce its arsenal proportionally to verified reductions by other nuclear states. This nuclear posture is a response to the current world, not a permanent preference.

Title VIII – Borders and Membership

Article XXXI – Open Physical Presence and Universal Rights

Section 1 – Open Physical Presence

Any person may enter Commonwealth territory and remain. Presence is not criminalized. There is no detention for movement. The coercive border enforcement characteristic of prior systems, which sorted persons into radically different life outcomes based on the morally arbitrary circumstance of birthplace, is abolished.

Section 2 – Universal Rights Upon Arrival

Every person present on Commonwealth territory is immediately entitled, from the moment of arrival and without application, means-testing, or demonstration of future intent to remain, to the material rights guaranteed under Article II, [Section 1](#), together with:

- Full legal protections and due process rights
- Freedom from arbitrary detention or removal

Section 3 – Commons-Allocated Housing

Commons-Allocated Housing is the primary mechanism through which all persons on Commonwealth territory access stable housing. The [Housing Implementation Council](#) maintains and administers a Commons housing stock sufficient to meet demand, governed by the following principles:

Allocation is determined by published objective criteria including household size, accessibility requirements, proximity to work or care responsibilities, and expressed preferences. No criterion related to civic integration status, race, gender, sexual orientation, religion, national origin, or any characteristic protected under Article III may be considered in allocation decisions. Where multiple applicants meet criteria equally, allocation is determined by sortition.

All allocation decisions are logged in real time through the [Transparency Engine](#). Persons denied a specific allocation receive a written determination stating the criteria applied. Appeals are heard by the [Housing Appeals Panel](#), a standard body of nine members serving three-year terms, with no membership overlap with the [Housing Implementation Council](#). [Constitutional Court](#) review is available on constitutional grounds.

The [Housing Implementation Council](#) publishes annual reports through the [Transparency Engine](#) on housing stock levels, allocation waiting times, demographic patterns in allocation outcomes, and progress toward eliminating any housing gap. Systematic disparities in allocation outcomes along any protected characteristic trigger mandatory review by the [Minority Impact Assessment Body](#) under Article VIII, [Section 4](#).

Section 4 – Persons Fleeing Persecution or Crisis

Persons fleeing persecution, violence, or acute crisis have an explicit constitutional guarantee that their [Section 2](#) rights continue for the duration of their danger regardless of duration of presence. This guarantee requires no application, determination, or bureaucratic process. The Commonwealth acknowledges that many persons fleeing danger are fleeing conditions that wealthy nations helped create, and that this history generates particular obligations of welcome. The prohibition on arbitrary detention or removal applies with full force to all persons on Commonwealth territory; no person may be removed on the basis of their persecution or crisis status, or lack thereof.

Section 5 – The Anti-Domination Basis

These rights rest on the same anti-domination rationale as Article II: material desperation is a lever of control, and the Commonwealth removes that lever entirely. Here, that guarantee begins for every person on Commonwealth territory from the moment of their arrival, without regard to duration of presence or immigration status.

Section 6 – Stable Housing Transition Obligation

The [Housing Implementation Council](#) maintains a public vacancy register through the [Transparency Engine](#) and a private register of Residential Tenures abandoned for over three years. The three-year threshold period is public and subject to [Sortition Legislature](#) review. Where the [Housing Implementation Council](#) determines that a housing gap exists – defined as any person on Commonwealth territory lacking access to stable housing or transitional housing meeting the standards of this Article – that cannot be fulfilled by the public vacancy register, all abandoned Residential Tenures are purchased by the Commons and the relevant properties are transferred to Commons housing stock.

Multi-family residences with private sleeping quarters and shared facilities are recognized as a transitional housing form meeting a dignity standard between emergency shelter and fully stable housing. They may be provided as transitional accommodation where fully stable housing cannot be immediately supplied, subject to the following conditions:

- Residents retain all rights under [Section 2](#)
- The [Justice Standards Council](#) sets minimum dignity standards for transitional multi-family residences
- The [Housing Implementation Council](#) is constitutionally obligated to provide each resident in transitional multi-family accommodation with fully stable housing within three years of their entry into that accommodation, with annual public reporting on progress

Where stable housing cannot be immediately provided due to supply constraints at the time of ratification or thereafter, emergency shelter of equivalent dignity is provided as a transitional measure. Emergency shelter is never a permanent substitute for stable housing. The [Housing Implementation Council](#) (Article XVI) is constitutionally obligated to eliminate any gap between emergency shelter provision and stable housing provision within five years of ratification, with annual public reporting on progress through the [Transparency Engine](#). New gaps created as a result of immigration to the Commonwealth must be addressed by the [Housing Implementation Council](#) within two years of the gap being identified and reported on. The [Sortition Legislature](#) may extend either transition period once only, by supermajority vote, if supply constraints genuinely prevent achievement within five years (ratification) or two years (reported new gap). No further extension is permitted. All persons in emergency shelter transition accommodations retain full rights under [Section 2](#) throughout.

Article XXXII – Residency, Civic Integration, and Full Membership

Section 1 – Automatic Residency

Any person present on Commonwealth territory for more than ninety continuous days automatically receives residency status. Residency is not applied for and not subject to bureaucratic discretion. It is automatic and immediate upon meeting the time condition.

Section 2 – Residency Rights

Residency status confers full access to the Material Sufficiency Floor, the right to work and join cooperatives, access to all Commons services, and absolute freedom from deportation or forced removal. Residency retains full legal protections and due process rights already provided to visitors.

Section 3 – The Civic Integration Index

Full political membership may be achieved through the Civic Integration Index. Its dimensions are:

- Active cooperative participation as a worker-member, verified through cooperative membership records held by the relevant cooperative and confirmed by the [Electoral Commons](#) under Article [VII](#), [Section 5](#)
- Completion of the constitutional principles education program, offered free at any pace in all threshold languages, verified through the education Commons institution upon completion

These dimensions are chosen because they are verifiable through existing institutional records without requiring behavioral monitoring of residents. The Commonwealth explicitly rejects participation tracking systems that would require surveillance of residents' civic behavior, recognizing that such systems are inconsistent with Article [XXXIII](#), [Section 2](#)'s prohibition on mass surveillance and with the anti-domination principle. If future technical architecture enables privacy-respecting civic engagement tracking that is genuinely consistent with these principles, the [Sortition Legislature](#) may add additional Index dimensions by supermajority vote subject to [Constitutional Court](#) review confirming consistency with Article [V](#) and Article [XXXII](#).

Worker-membership in a cooperative, including full ownership rights and democratic governance participation within that cooperative, is available to all residents of the Commonwealth regardless of civic integration status. Cooperative ownership rights are governed by Article [XX](#) and are distinct from political membership rights conferred by full civic integration under this Article. Cooperative worker-membership by residents counts toward the Civic Integration Index under this Section.

Section 4 – Flexible Achievement

The Index may be achieved at any pace. A minimum residency floor of one year applies. Someone who arrives and engages immediately in cooperative work may achieve full membership in approximately eighteen months upon education program completion. Someone dealing with trauma, language acquisition, disability, caregiving responsibilities, or other legitimate life circumstances may take longer without penalty, and remains on the automatic membership pathway of [Section 5](#) throughout. The Commonwealth recognizes community connection – participation in mutual aid networks, local Commons governance, and neighborhood life – as a valued dimension of civic culture that the Index does not and cannot measure. The Commons infrastructure actively supports these forms of participation because they strengthen the democratic culture this Constitution is designed to sustain, not because they are conditions of membership.

Section 5 – Maximum Time Ceiling

Any person who has maintained residency for four continuous years is automatically granted full civic membership regardless of Index score, provided they have not been found by the [Constitutional Court](#) to have actively and deliberately worked against the foundational principles during that period. Passive non-participation does not disqualify.

Section 6 – Automatic Conferral

Upon meeting either the Index threshold or the four-year ceiling, full civic membership is conferred automatically. It is not subject to bureaucratic discretion or rejection. Membership confers the right to be selected for governance positions via sortition and the right to vote in all national direct votes, referenda, and civic initiative processes under this Constitution. Residents who have not yet attained full civic membership retain the full rights of Title I and Title VIII regardless, but do not vote in national processes until membership is conferred.

Section 7 – No Cultural Assimilation Requirement

Full membership does not require language fluency beyond functional communication, cultural conformity, or value alignment beyond genuine commitment to the foundational principles of this Constitution – including the equality provisions of Article [III](#).

Section 8 – Foreign Funding Prohibition

All political organizations, media outlets, civil society groups, and advocacy organizations must publicly disclose all funding sources in real time through the [Transparency Engine](#). Foreign funding of domestic political activity is prohibited and criminally enforceable.

Title IX – Internal Security and Justice

Article XXXIII – Internal Security Principles

Section 1 – No Secret Police

All security operations are subject to real-time oversight by rotating [Citizen Oversight Panels](#) (Article [XII](#)). The existence of all investigations must be publicly logged in real time through the [Transparency Engine](#), though content may be withheld during active operations.

Section 2 – No Mass Surveillance

Security bodies are authorized to investigate specific credible threats, not to conduct surveillance of the general population. Mass collection of communications, location data, or behavioral data on residents is constitutionally prohibited and may not be enabled by any emergency declaration.

Section 3 – Separation of Investigation and Enforcement

The body that investigates potential threats may not be the same body that acts on them. Investigation findings are submitted to the [Security Enforcement Review Panel](#), defined in [Section 6](#), which independently authorizes specific enforcement actions. No single body holds both the power to identify threats and the power to act against them.

Section 4 – The Investigation Body

The [Security Investigation Governing Board](#) is a standard body of nine members serving three-year terms, selected from the [Qualification Commons](#) pool for security investigation competency. The Board sets investigation priorities, authorizes opening and closing of investigations by majority vote, and reviews all findings before submission to the [Security Enforcement Review Panel](#). A professional investigative staff implements authorized investigations under the direction of a Staff Director selected through the [Qualification Commons](#), serving five-year terms renewable subject to the reconfirmation mechanism of Article [VI](#). The Staff Director has operational independence within Board-authorized investigations; any Board attempt to direct specific investigative tactics rather than priorities is automatically logged through the [Transparency Engine](#) as a potential constitutional violation. Content of active investigations may be withheld from the [Transparency Engine](#) by Board majority vote for up to one year, renewable once by supermajority. The [Citizen Oversight Panel](#) (Article [XII](#)) embedded in this body has full access to all content including withheld material throughout.

Section 5 – Protection of Governance Participants

Security services may not investigate legislators, judges, council members, or other governance participants without authorization from the [Constitutional Court](#) with full transparency to the relevant [Citizen Oversight Panel](#).

Section 6 – The Security Enforcement Review Panel

The [Security Enforcement Review Panel](#) is a standard body of nine members serving three-year terms, with no other governance role. The Panel receives investigation findings and independently authorizes or declines specific enforcement actions. Authorization requires five of nine members. The Panel may not conduct investigations itself. All authorization decisions are logged in real time by the [Transparency Engine](#).

Section 7 – Community-Based Enforcement

Enforcement of laws at the local level is community-based, with officers selected from and accountable to the communities they serve, subject to immediate community recall. Recall is achieved via simple majority vote through the [Transparency Engine](#).

Article XXXIV – Justice and Restoration

Section 1 – Restorative Principle

The Commonwealth’s justice system is oriented toward restoration of harm, community accountability, and addressing the conditions that produce harmful behavior. Punishment as an end in itself, and incarceration as a default response to social problems, are inconsistent with the anti-domination principle.

Section 2 – Abolition of the Carceral Default

Mass incarceration is a form of domination. Incarceration is reserved for genuine public safety necessity or demand from the surviving party, and is subject to strict time limits, humane conditions, and regular review by independent [Citizen Oversight Panels](#) (Article [XII](#)).

Section 3 – Community Justice Bodies

Restorative justice is implemented through [Community Justice Bodies](#) embedded within local democratic governance under Article [VIII](#). Members are selected by local lottery from qualified pools on rotating terms not to exceed two years. Terms are staggered so that no more than half a Body’s membership rotates out in any single selection cycle, and no person may serve consecutive terms without an intervening term served by another resident. [Community Justice Bodies](#) facilitate restorative processes, connect parties to support resources, and implement agreed accountability measures within the minimum standards established by the [Justice Standards Council](#) ([Section 4](#)). Members may not have personal relationships to either party that would compromise impartiality, assessed by the local [Citizen Oversight Panel](#).

Section 4 – The Justice Standards Council

A [Justice Standards Council](#), constituted as an [Implementation Council](#) under Article [XVI](#), sets and maintains minimum standards for restorative justice processes Commonwealth-wide. It does not adjudicate individual cases. Its mandate is standard-setting, monitoring, training resource provision, and annual public assessment of restorative justice implementation across communities. All standards are published in full through the [Transparency Engine](#).

Section 5 – Minimum Standards

The following minimum standards apply to all restorative justice processes without exception and may be raised but not lowered by the [Justice Standards Council](#):

- No restorative process may proceed without the genuine informed consent of the person who experienced harm. Consent may be withdrawn at any point without penalty.

- Survivors retain the absolute right to exit a restorative process at any point and to request a carceral response instead, without this choice being used against them in any subsequent proceeding.
- Persons who have caused harm may not be coerced into restorative processes as a condition of avoiding harsher consequences in ways that undermine the genuine voluntariness of their participation.

All restorative processes are logged by existence through the [Transparency Engine](#). Process content is protected to preserve integrity and participant privacy. Outcomes and compliance with minimum standards are public.

Section 6 – Escalation Mechanism

A survivor who believes a [Community Justice Bodies](#) process has been compromised by local power dynamics may escalate to a regional [Justice Standards Council](#) ([Section 4](#)) review. This review assesses whether minimum standards were met, not the substantive outcome. If minimum standards were not met, the process is void. The survivor may then choose a fresh community process or a carceral response.

Section 7 – Intimate Partner and Domestic Violence

Restorative justice mechanisms for intimate partner and domestic violence prioritize the agency of the survivor above all other considerations. Survivors determine the form of accountability process. Carceral responses are available whenever survivors choose them. No community norm, facilitation preference, or [Justice Standards Council](#) guidance may be used to discourage survivors from choosing carceral responses.

Section 8 – Secure Facilities

Where incarceration is necessary, secure facilities are governed by the [Justice Standards Council](#) with mandatory independent oversight by rotating [Citizen Oversight Panels](#) (Article [XII](#)). Panels have full and unrestricted access to all facility conditions, records, and residents. Facility conditions must meet the Material Sufficiency Floor without exception, consistent with Article [II](#), [Section 3](#). All incarceration is subject to strict time limits and mandatory periodic review by independent citizen panels.

Section 9 – Voluntary Labor by Incarcerated Persons

Incarcerated persons may voluntarily perform wage labor within secure facilities. Participation is strictly voluntary and may not be made a condition of any benefit, privilege, reduced term, or favorable treatment within the facility. Refusal to participate may not result in any penalty, reduction of rights, or adverse treatment of any kind.

Labor performed by incarcerated persons serves only Commons institutions or the person’s own skill development. No cooperative, private entity, or commercial operation may benefit from the labor of incarcerated persons.

Wages are set by the [Justice Standards Council](#) ([Section 4](#)) at no less than the essential sector compensation floor established in Article [XXVI](#), [Section 2](#). Incarcerated persons determine whether

wages are held as a reintegration fund payable upon release, directed to dependents during incarceration, or divided between both purposes. The [Justice Standards Council](#) may not alter the wage floor downward; it may raise it.

All labor arrangements are logged through the [Transparency Engine](#). The [Citizen Oversight Panel](#) (Article [XII](#)) embedded in the [Justice Standards Council](#) reviews labor conditions annually and publishes findings publicly.

Title X – Reparative Justice and Indigenous Sovereignty

This Commonwealth acknowledges that any territory in which it is established will carry a history of dispossession of indigenous peoples, and of accumulated wealth and social structures built through the enslaved and coerced labor of peoples subjected to racial domination. These historical harms produce ongoing inequalities that universal systems alone do not correct.

Article XXXV – Indigenous Sovereignty

Section 1 – The Land Back Negotiation Office

A [Land Back Negotiation Office](#), jointly structured by the Commonwealth and indigenous nations with territorial claims on Commonwealth land, is established within one year of ratification. Its mandate, staffing, and budget are co-determined in a preliminary convening achieving representation from all indigenous nations with territorial claims. Staffing term structures are determined through the joint convening process. If the convening has not reached agreement on staffing, budget, or term structures by the one-year establishment deadline, the [Electoral Commons](#) convenes an interim Office at a scale sufficient to carry on negotiations, exercising no discretion over the outcome and making no substantive negotiating decisions; this interim arrangement is without prejudice to the permanent structure the convening ultimately adopts.

Section 2 – Negotiation Timeline and Review

A jointly agreed negotiation framework is published within two years. Annual good faith progress reports are published jointly beginning in year three. A mandatory [Constitutional Assembly](#) review occurs in year seven, with remedial authority for the [Constitutional Court](#) if the Commonwealth has failed to negotiate in good faith.

Section 3 – Sovereignty Exit

Where an indigenous nation chooses to exercise full sovereignty over returned land, that land exits Commonwealth territory entirely. The relationship between the Commonwealth and sovereign indigenous nations is thereafter governed by Article [XXVIII](#) and Article [XXIX](#); the anti-imperialism principle applies in full and the Commonwealth may not use economic leverage, infrastructure access, or resource dependency as instruments of coercion toward sovereign indigenous nations.

Section 4 – Transition Protections

The terms of infrastructure transition on returned land are determined through negotiation; the Commonwealth may not use infrastructure dependency as leverage in those negotiations. The rights of Commonwealth residents present on returned land during any sovereignty transition are addressed within the negotiated agreement; the Commonwealth commits to protecting those residents' Material Sufficiency Floor rights (Article [II](#)) during any transition period, without using their presence as grounds to delay or deny sovereignty recognition.

Section 5 – Entrenchment

Territorial agreements reached through this process are constitutionally entrenched upon ratification by both parties and may not be reversed by subsequent legislative majorities on grounds of territorial

integrity. The Commonwealth’s territorial boundary is subject to justice-based revision through this process; this commitment is permanent and may not be abolished by any [Constitutional Assembly](#).

Article XXXVI – Reparations

Section 1 – The Reparations Design Council

A [Reparations Design Council](#) with affected community majority representation and genuine veto authority over its mandate is constituted within one year of ratification. Initial members are selected through nomination processes organized by affected communities and coordinated administratively by the [Electoral Commons](#), which verifies eligibility but exercises no discretion over who is nominated. Once constituted, the Council determines its own ongoing term structure and future selection process, consistent with its mandate and affected community majority governance. Land-based remedies are within the Council’s authority to recommend.

Section 2 – Timeline and Funding Protection

A documented Harm Assessment is published within two years. A Form and Scale Recommendation is published within three years; the [Sortition Legislature](#) may not reduce the recommended scale by more than twenty percent without supermajority vote and [Constitutional Court](#) review for consistency with the anti-domination principle. Annual reparative allocations begin in year four, protected from reduction below the recommended scale by the same supermajority threshold.

Section 3 – Review and Completion Standard

A mandatory ten-year review assesses gap closure, with automatic escalation if gaps are not closing. The reparative obligation continues until the [Reparations Design Council](#), with an affected-community majority, formally determines it has been sufficiently addressed. The Commonwealth does not unilaterally declare this obligation complete.

Section 4 – Calibration to Territorial History

The specific forms of harm assessment and remedy are calibrated to the territory’s actual history; the [Reparations Design Council](#)’s first task is to determine which historical harms apply in the specific territorial context of the Commonwealth’s establishment.

Title XI – Amendment, Revision, and Constitutional Survival

Article XXXVII – Ordinary Amendment

Provisions of this Constitution outside the foundational principles of Title I may be amended by a supermajority of four-fifths of the [Sortition Legislature](#) (Article IX), followed by a national direct vote with sixty percent approval, followed by [Constitutional Court](#) (Article X) review confirming consistency with Title I principles.

Article XXXVIII – The Failure Protocol

Section 1 – Acknowledgment

This Constitution is imperfect. Future generations will identify failures invisible to its authors. The measure of the designed system will not be the accuracy of its foresight but its ability to facilitate analysis of the material conditions and necessary self-correction.

Section 2 – Extraordinary Constitutional Assembly

As established in Article XI, [Section 4](#), if the [Constitutional Court](#), the [Citizen Oversight Panel](#), and the [Transparency Engine](#) collectively and independently identify that the system is failing its foundational principles in ways beyond normal correction, they may jointly trigger an Extraordinary [Constitutional Assembly](#) with full popular mandate to redesign the failing elements. See Article XI, [Section 4](#) for triggering conditions and procedures.

Section 3 – The Anti-Sycophancy Clause

No governance body and no [Constitutional Assembly](#) may interpret this Constitution primarily to validate the decisions of the current governing generation. Interpretation is oriented toward the foundational principles and the interests of those who hold the least power, not toward institutional self-preservation.

Title XII – Transitional Provisions

Article XXXIX – Founding Mechanisms

Section 1 – Qualification Commons Bootstrap

At founding, before a pool of former [Expert Advisory Corps](#) or other qualified body members exists from which to draw scoring panels, the [Qualification Commons](#) bootstraps as follows: the [Rubric Body](#) is initially populated by persons designated by the [Constitutional Assembly](#), serving one-time non-renewable founding terms, barred from serving in any body whose qualification pool they help populate (Article VII, [Section 8](#)). Initial domain scoring panels are drawn reciprocally from adjacent domains rather than from within each domain, preventing any single professional community from controlling its own entry point at the founding moment. These founding arrangements sunset automatically once each domain pool reaches a threshold of one hundred fifty qualified members, sufficient to ensure that the probability of any individual member’s selection in a given scoring cycle does not exceed five percent, at which point the standard [Qualification Commons](#) process takes over.

Section 2 – Cooperative Development Bank Bootstrap

At founding, before a mature cooperative sector exists from which to draw Peer Panel members, lending decisions are made by panels drawn from the [Constitutional Assembly](#)’s designees, with explicit sunset once the cooperative sector reaches one hundred established enterprises. The Development Partnership process and all other Bank architecture apply from day one.

Section 3 – Land Tenure Conversion

On territory where persons currently hold private land ownership at the time of ratification, existing titles are converted as follows:

Persons who constructed their dwelling or made improvements whose assessed labor value exceeds twenty-five percent of the assessed replacement cost receive a Residential Tenure automatically at ratification. No charge applies. The security, heritability, and non-transferability provisions of Article XXII, [Section 1](#) apply immediately.

Persons who purchased their dwelling under the prior system receive a Residential Tenure automatically at ratification on the same terms. In recognition of the financial investment made in good faith under the prior system, these persons are additionally eligible for a one-time Commons Transition Payment, administered by the [Housing Implementation Council](#) against published criteria. The Commons Transition Payment is assessed at the difference between the replacement cost of improvements and the original purchase price adjusted for inflation, capped at the replacement cost of improvements. The payment phases out linearly for persons whose non-housing financial assets exceed the Commonwealth median annual wage, and is eliminated entirely for persons whose non-housing financial assets exceed ten times the Commonwealth median annual wage at the time of ratification. The Commonwealth median annual wage for this purpose is determined by the [Monetary Authority](#) at ratification and published through the [Transparency Engine](#).

All existing tenants and renters under the prior system are immediately enrolled in Commons-Allocated Housing under Article XXXI, [Section 6](#) and receive stable housing through that mechanism. No person is displaced by the transition.

Market transferability of all Residential Tenures ends at ratification. No Residential Tenure created under this Section may be sold, leased for profit, or used as a market commodity in any form after ratification.

Cooperatives that constructed or significantly developed their premises prior to ratification receive a Builder’s Productive Tenure automatically at ratification. Cooperatives that purchased their premises under the prior system receive a Builder’s Productive Tenure automatically at ratification and are additionally eligible for a one-time Commons Cooperative Transition Payment, assessed at the difference between improvement replacement cost and the inflation-adjusted original purchase price, capped at replacement cost. The payment is assessed against the cooperative’s collective financial assets rather than individual member assets, and phases out linearly for cooperatives whose non-premises financial assets exceed ten times the Commonwealth median cooperative sector annual wage, eliminating entirely at the upper threshold. Market transferability of all Productive Tenures ends at ratification.

The [Housing Implementation Council](#) administers all assessments under this Section against published criteria, with full documentation logged through the [Transparency Engine](#). Disputes are heard by the [Housing Appeals Panel](#) under Article XXXI, Section 3. The [Constitutional Court](#) (Article X) has review authority on constitutional grounds.

Section 4 – Staggered Sortition Bootstrap

The staggered bootstrapping of founding sortition body populations – including term-length lottery assignment, permanent non-renewability of founding service, and pro-rated civic service benefits – is governed by Article VII, [Section 9](#).

Conclusion

This document is a proposal. It should be peer-reviewed, revised further, and kept public and open-source. Contributors should understand that no document, however carefully designed, captures all of what justice requires or anticipates all the ways power will seek to assert itself.

Every person who reads this should attempt to identify what contributors have gotten wrong, what they have omitted, and what the foundational principles require that they have failed to specify.

The aim is a principled system – one that places the freedom and dignity of every human being above the comfort of those who would hold power, and that gives every generation the authority and the tools to make its system more just than the last.

Glossary of Constitutional Bodies

Citizen Oversight Panel Twelve-member panels embedded within every governance body and Implementation Council. Established by Article [XII](#). [19](#), [20](#), [26](#), [28](#), [31](#), [33](#), [47](#), [56](#), [79–82](#), [89](#)

Civic Initiative Infrastructure The Commons institution providing verified channels for the civic membership to trigger constitutional interventions. Established by Article [XIV](#). [19](#), [27](#), [33](#), [35](#), [40](#)

Civic Initiative Oversight Body The nine-member body governing the Civic Initiative Infrastructure. Established by Article [XIV](#), [Section 2](#). [33](#)

Commons Investment Fund The fund financing long-term infrastructure investment. Established by Article [XXIII](#), [Section 4](#). [52](#), [53](#), [56](#)

Community Justice Bodies Locally selected bodies facilitating restorative justice processes within local democratic governance. Established by Article [VIII](#), [Section 6](#). [25](#), [80](#), [81](#)

Constitutional Assembly The thousand-person body convened every twenty-five years to review and revise foundational principles. Established by Article [XI](#). [15](#), [27](#), [28](#), [47](#), [85](#), [86](#), [89](#), [93](#)

Constitutional Court The fifteen-justice body reviewing legislation for constitutional compliance. Established by Article [X](#). [15](#), [16](#), [20–22](#), [26–28](#), [31](#), [33–35](#), [39](#), [41](#), [45](#), [51](#), [55](#), [60](#), [65](#), [67–69](#), [73](#), [75](#), [79](#), [85](#), [86](#), [89](#), [94](#)

Cooperative Development Bank The publicly chartered bank providing at-cost startup financing and working capital to cooperatives. Established by Article [XX](#), [Section 6](#). [47](#), [48](#), [51](#), [52](#), [57](#)

Coordination Assembly The body of rotating Implementation Council representatives managing cross-domain issues. Established by Article [XVI](#), [Section 4](#). [39](#), [58](#)

Cross-Panel Coordination Body A body of rotating representatives from each Citizen Oversight Panel, sharing observed patterns across governance bodies. Established by Article [XII](#), [Section 4](#). [28](#), [31](#)

Defensive Posture Review Body The sixteen-member body conducting mandatory public review of military force structure and capability. Established by Article [XXX](#), [Section 8](#). [68](#)

Electoral Commons The Commons institution responsible for maintaining the civic membership roll and conducting all sortition. Established by Article [VII](#), [Section 5](#). [20](#), [21](#), [28](#), [33](#), [35](#), [41](#), [75](#), [85](#), [86](#)

Emergency Review Panel A one-hundred-fifty-person panel reviewing actions taken under emergency authorization. Established by Article [XIV](#), [Section 4](#). [34](#), [35](#)

Emergency Threshold Verification Body The sixteen-expert body that verifies objective triggering conditions for emergency protocols. Established by Article [XVII](#), [Section 2](#). [40](#)

Environmental Regulatory Body The body setting and enforcing emissions, water quality, land use, and extraction standards. Established by Article [XXVII](#), [Section 6](#). [56](#), [60](#)

Exemption Review Panel The nine-member panel within the Electoral Commons reviewing disputed hardship exemption certifications. Established by Article VII, Section 2. 21

Expert Advisory Corps The permanent body of domain specialists advising the Sortition Legislature. Established by Article IX, Section 3. 26, 93

Financial Regulatory Body The enforcement authority for the prohibitions on rent-extractive financial activity, and for cooperative market dominance. Established by Article XXIII, Section 5. 47, 53, 54, 59–61

Foreign Relations Council The twelve-member body managing diplomatic relationships and negotiating international agreements. Established by Article XXVIII. 41, 42, 65, 67

Housing Appeals Panel The nine-member body hearing appeals of Commons-Allocated Housing denials. Established by Article XXXI, Section 3. 73, 94

Housing Implementation Council The Implementation Council responsible for housing, tenure assessment, and Commons-Allocated Housing. Established by Article XXXI, Section 3. 49, 50, 58, 73, 74, 93, 94

Implementation Council Domain-specific bodies translating legislative decisions into operational reality. Established by Article XVI. 20–22, 31, 39–42, 49, 50, 53, 56–59, 67, 80

Justice Standards Council The body setting minimum dignity standards for transitional housing and restorative justice processes. Established by Article XXXIV, Section 4. 74, 80–82

Land Back Negotiation Office The office jointly structured by the Commonwealth and indigenous nations to negotiate the return of territorial claims. Established by Article XXXV. 85

Meta-Review Chamber The thirty-member body reviewing Constitutional Court decisions for quality of reasoning and consistency. Established by Article X, Section 3. 27

Minority Impact Assessment Body The twenty-one-member body assessing whether local decisions significantly harm an identifiable minority. Established by Article VIII, Section 4. 25, 73

Monetary Authority The democratically governed public body responsible for money creation. Established by Article XXIII, Section 3. 51–54, 93

National Cooperative Standards Body The body setting and enforcing the minimum size threshold at which an enterprise must organize as a worker cooperative. Established by Article XXVII, Section 6. 46, 60

Nuclear Use Authorization Council The eight-member body holding sole nuclear launch authorization. Established by Article XXX, Section 6. 68

Public Banking System The Commons institution providing savings, checking, and personal lending services at cost. Established by Article XXIII, Section 2. 50–52

Public Health and Safety Regulatory Body The body overseeing pharmaceutical, medical device, food, and public health safety. Established by Article [XXVII](#), [Section 6](#). [60](#)

Qualification Commons The permanent Commons institution maintaining qualification pools for sortition bodies requiring demonstrated competence. Established by Article [VII](#), [Section 8](#). [19](#), [22](#), [26](#), [32](#), [39](#), [59](#), [79](#), [93](#)

Reparations Design Council The affected-community-majority body designing and overseeing reparative resource allocation. Established by Article [XXXVI](#). [86](#)

Residual Coordination Council The five-person body with narrowly limited fallback coordination authority in novel cross-domain emergencies. Established by Article [XVIII](#). [40–42](#), [65](#)

Rubric Body The nine-member body that designs and revises qualification rubrics for the Qualification Commons. Established by Article [VII](#), [Section 8](#). [22](#), [93](#)

Security Enforcement Review Panel The nine-member body that independently authorizes or declines enforcement actions on investigation findings. Established by Article [XXXIII](#), [Section 6](#). [35](#), [53](#), [60](#), [79](#)

Security Investigation Governing Board The nine-member body that sets investigation priorities and authorizes opening and closing of security investigations. Established by Article [XXXIII](#), [Section 4](#). [33](#), [79](#)

Sortition Legislature The national legislative body, made up of six hundred members selected by sortition and serving staggered three-year terms. Established by Article [IX](#). [21](#), [22](#), [25](#), [26](#), [28](#), [34](#), [39](#), [41](#), [45](#), [47](#), [49](#), [51–61](#), [65](#), [74](#), [75](#), [86](#), [89](#)

Transparency Engine The open-source, cryptographically tamper-evident system through which all exercises of power are logged and disclosed in real time. Established by Article [XIII](#). [16](#), [19–22](#), [25](#), [28](#), [31–33](#), [35](#), [39–41](#), [47](#), [48](#), [52–54](#), [56–60](#), [65](#), [67](#), [68](#), [73](#), [74](#), [76](#), [79–82](#), [89](#), [93](#), [94](#)

Transparency Engine Oversight Body The nine-member sortition body that may add logging categories to the Transparency Engine. Established by Article [XIII](#), [Section 2](#). [32](#)

Treaty Review Body The twenty-member body reviewing proposed international agreements for compliance with the anti-imperialism principle. Established by Article [XXIX](#), [Section 6](#). [66](#), [67](#)

Whistleblower Infrastructure The constitutionally protected anonymous reporting channel embedded within the Transparency Engine. Established by Article [XIII](#), [Section 6](#). [31](#), [32](#), [40](#)

Whistleblower Infrastructure Panel The five-member body governing the Whistleblower Infrastructure. Established by Article [XIII](#), [Section 6](#). [32](#)

Worker Safety Regulatory Body The body setting minimum workplace safety floors. Established by Article [XXVII](#), [Section 6](#). [60](#)